

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, aligns with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to ‘include everyone, regardless of circumstance, context or background’. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](#)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](#)

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](http://uis.unesco.org)

- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: PORTUGAL

Organization or entity responsible for the preparation of the report: Directorate-General for Education

Name of contact person: David Sousa (Director-General)

Email and telephone number of contact person: david.sousa@dge.mec.pt; +35121 393 4500

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☒ Yes ☐ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

☐ No

☐ Yes: Have the provisions of the Convention been invoked?

¹⁰ <https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

¹¹ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

☐ Yes ☐ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

*It further corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²*

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☒ Yes ☐ No

- If yes, please provide reference:

The reference documents, [National Strategy for Citizenship Education \(ENEC\)](#) (2017), aligned with the [Students’ Profile by the End of Compulsory Schooling](#), homologated by Dispatch no. 6478/2017, July 26 are in force.

Both ensure that education provided in Portugal, in all different cycles of compulsory education, enshrine the respect for the founding principles of the Sustainable Development Goals (SDG) and the European Pillar of Social Rights.

Moreover, the following can be mentioned:

- [Act Law for the Education System no. 46/1986](#) as amended by the [Law no. 49/2005](#);
- [Law no. 51/2012, September 5](#) – Student Statute and School Ethics (Lei n.º 51/2012, de 5 de setembro – Estatuto do Aluno e Ética Escolar;
- [Decree-Law no. 55/2018, July 6](#);
- [Decree-Law no 54/2018, 6 July](#) – Law on Inclusive Education;

¹² Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

- [Law no. 116/2019, September](#) 13 - amendments to DL no 54/2018, 6 July;
- [Decree-Law no 62/2023, July 25](#) – Amends the rules for adapting the assessment process within the scope of the legal framework of inclusive education and the rules relating to the process of external assessment of learning;
- Council of Ministers Resolution No. 30/2020, of April 21, approved the Digital Transition Plan (which includes the School Digitization Program) that established a new framework for digital transformation by approving an action plan for a digital Portugal;
- Council of Ministers Resolution No. 103-C/2024, August 16, authorises expenditure on the purchase of connectivity services for primary and secondary school students in public establishments.

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

☒ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please indicate the relevant legal provisions:

In Portugal there's a universal right to preschool, primary and secondary education for all children irrespective of their legal status and applied in a non-discriminatory way.

[Inclusive education](#), within the national education and training system has been a driving force for equal opportunities, where everyone, regardless of the personal and social situation, can find answers that make it possible to acquire a level of education and training for a full social integration.

The [Constitution of the Portuguese Republic](#) (CPR) establishes that "everyone has the right to education and culture" (Article 73, no. 1). In this vein, in Portugal, schooling is compulsory for all children and

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

young people aged between 6 (six) and 18 (eighteen) years old. Moreover, the Article 13 of the CPR on the Principle of Equality states that:

1. *All citizens have the same social dignity and are equal before the law;*
2. *No one may be favoured, benefited, disadvantaged, deprived of any right or exempted from any duty on the grounds of ancestry, sex, race, language, territory of origin, religion, political or ideological convictions, education, economic situation, social status or sexual orientation. - VII Constitutional Revision [2005].*

[Act Law for the Education System no. 46/1986](#) states:

Article 2

1. *All Portuguese have the right to education and culture, under the terms of the Constitution of the Republic;*
2. *It is the special responsibility of the State to promote the democratisation of education, guaranteeing the right to a fair and effective equality of opportunity in school access and success. (...)*

Article 3

The Education System is organised: (...)

- j) *To ensure equal opportunities for both sexes, namely through co-education practices and school and vocational guidance, and to sensitise all those involved in the educational process.*

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

All forms of discrimination based on gender, race or ethnic origin, nationality, religion or belief, age and/or having special needs are prohibited.

☒ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please provide details:

[Basic Law of the Educational System](#) (Law no. 46/1986, of October 14) establishes, in its general principles (art. 2. 9) that the State has to provide to all citizens the right to education and culture, under the terms of the CPR, guaranteeing the right to a fair and effective equality of opportunities in access to and success in school (nºs. 1 and 2).

Portugal is committed to the transversal measures assumed in national strategic documents, within the scope of guaranteeing integration and compliance with fundamental rights, notably:

- (i) [National Strategy for Children's Rights 2021-2024 - Resolution of the Council of Ministers no. 112/2020 of 18th December](#) approving the National Strategy for the Rights of the Child for the period 2021-2024;
- (ii) [Child Guarantee Action Plan 2022-2030](#) - Council of Ministers Resolution no. 3/2023 of 17th January that approves the Child Guarantee Action Plan 2022-2030;
- (iii) [National Strategy to Combat Poverty](#) - Council of Ministers Resolution no. 184/2021, of 29 December, approving the National Strategy to Combat Poverty 2021-2030;
- (iv) [National Plan to Combat Racism and Discrimination 2021-2025](#);
- (v) [National Strategy for the Integration of Roma Communities](#);
- (vi) [National Strategy for Equality and Non-Discrimination 2018-2030](#) - published on 21 May 2018 in Council of Ministers Resolution no. 61/2018;

Moreover, the [National Implementation Plan for the Global Compact on Migration](#) approved by Resolution of the Council of Ministers no. 141/2019, of 20 August and a [National System of Early Intervention](#) can also be mentioned.

The later, integrates an organised set of services under the responsibility of the Ministries of Education, Health, Labour and Social Security aimed at children ages between 0 and 6 years old and their families, with the mission to guarantee an early childhood intervention. The intervention shall be carried out in the usual environments of children (home, day-care, kindergarten, others), during daily routines and activities in order to promote the child's participation in learning experiences, starting from the goals defined by the family.

The [Law on Inclusive Education](#), in its actual version, establishes the principles and norms that guarantee inclusion, understood as a process that aims to respond to the diverse needs of **all** students. The Decree-Law covers **all learners**, from school clusters and non-grouped schools, professional schools and establishments of pre-school education and basic and secondary education of private, cooperative and solidarity networks.

Assistive products/devices are available to enable participation in the learning process and to access curriculum through the Information and Communication Technology Resource Centres (Centro de Recursos de Tecnologias da Informação e Comunicação – CRTIC)

At schools' request, they carry out the assessment of students' needs, for granting the assistive products/devices, that is financed by the Ministry of Education, under [the System of Assignment of Assistive Products](#) (Legislative Order No. 7197/2016, June 1).

CRTIC also produce adapted material and train teachers to use special software for different disabilities.

The [Ministry of Education's Resource Centre \(RC\)](#) produces schoolbooks in Braille and large font.

In 2021, the Portuguese government approved the [National Plan to Combat Racism and Discrimination 2021-2025](#), which *"defends equality, strongly opposes segregation, is based on a vision of community that rejects any form of marginalisation of its citizens and fights against structural inequalities"*. Education and Culture is one of the 10 (ten) key areas of intervention in this Plan and one of the specific measures in the document is the creation and distribution of a **Guide with recommendations for preventing and combating racial discrimination in schools**. This Guide, published in 20243, and authored by the former High Commission for Migration, I.P. (ACM, I.P.) and the Commission for Equality and Against Racial Discrimination (CICDR), has been collaborated on, by the Directorate-General for Education (DGE).

It aims to support schools and their professionals in defining strategies and identifying practices for preventing and combating racial discrimination within the educational community, considering "*the various spaces and times of school life*" and recognising the role of school clusters and non-clustered schools as "*agents of social change*".

Educational Territories of Priority Intervention Programme (TEIP - Programa Territórios Educativos de Intervenção Prioritária) is part of a set of measures aimed at promoting educational success and the inclusion of all children and young people who attend the public education system.

The fourth generation TEIP (TEIP4), created by [Order no. 7798/2023 of 28 July](#), is in development in the current (2024/2025) school year. As an educational policy measure aimed at school groups and non-grouped schools located in areas with a high number of children and young people at risk of social vulnerability, it aims to ensure inclusion and educational success, improving the quality of learning and combating school dropout.

The [National Arts Plan](#), created in 2019 aims, among other objectives, to foster collaboration among artistic agents, the educational community, and other stakeholders, in order to design teaching and learning strategies that promote an inclusive curriculum, without barriers between the school and its surroundings.

In the framework of **Higher Education**, the following can be mentioned:

- Project EEA Grants Portugal : [PDP2 – GE HEI – Gender Equality in HEI](#)

A Project financed by the Conciliation and Gender Equality Program of the EEA Grants 2014-2021, in which the Commission for Citizenship and Gender Equality (CIG) is the Program Operator, and the promoting entity is the General Directorate of Higher Education (DGES), in partnership with (i) CIEG - ISCSP-ULisboa, (ii) RIKK - Institute for Gender, Equality and Difference at the University of Iceland and (iii) A3ES - Higher Education Assessment and Accreditation Agency.

One of the main objectives of the Ge-HEI Project – Gender Equality in Higher Education Institutions, is to identify and combat the factors that contribute to explaining inequalities between women and men in Higher Education, as well as the elaboration of a set of recommendations for the development of Gender Equality criteria in Higher Education Institutions.

More information about the project is available at:

Project EEA Grants Portugal : PDP2 – GE HEI – Gender Equality in HEI - <https://gehei.dges.gov.pt/> (PT version only)

<https://www.eeagrants.gov.pt/pt/programas/conciliacao-e-igualdade-de-genero/projetos/projetos-pre-definidos/pdp2-ge-hei-gender-equality-in-higher-educations-institutions/>

- [Project DG REFORM Making HE more inclusive in Portugal](#) (PT version only)

This project, on the one hand, will investigate the experiences of other countries that are developing, or have already implemented strategies, with similar objectives. On the other hand, through consultations with various groups of interested parties in different parts of the national territory, an attempt will be made to better understand this reality, namely the specific causes that, in different contexts that will be analyzed, will limit these students' access to higher education in Portugal.

Based on these conclusions, it will be possible to design and implement an action plan, including possible legislative and non-legislative measures. These measures, will support the Directorate-General for Higher Education in developing solutions that increase access to and completion of studies in higher education for groups of students socioeconomically disadvantaged, especially in study programs and more competitive HEIs, thus contributing to increasing equity and inclusion in higher education in Portugal.

Additional information about the project available at:

<https://www.dges.gov.pt/pt/pagina/projeto-tornar-o-ensino-superior-mais-inclusivo-em-portugal?plid=39675>

☒ Combatting discrimination in terms of curriculum:

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please provide details:

The curricular framework ([Decree-Law no. 55/2018, July 6](#)) integrates the curricular component “Citizenship and Development” in the structure of all education and training provisions (from primary education to upper secondary education).

By using an interdisciplinary approach, it entails a cross-curricular work, mobilising the contributions of different curriculum components and aiming at the intersection of the content learning of those subjects and units with the topics of the National Strategy for Citizenship Education, through projects developed by students in each class.

At the 2nd and 3th cycles of Basic Education (from 5th to 9th grades), “Citizenship and Development” is an autonomous subject, encompassing 17 interrelated domains (topics) 6 of which are compulsory for all school levels and cycles, namely: Human Rights; Gender Equality; Interculturality; Sustainable Development; Environment Education and Health.

The [National Strategy for Citizenship Education \(ENEC\)](#) , launched by the Government in 2017, is being implemented aligned with the [Students’ Profile by the End of Compulsory Schooling](#) in the frame of Decree-Law no. 55/2018, July 6.

The Strategy aims to help students to develop and to participate actively, namely through projects that promote fairer and more inclusive societies within the context of democracy, respect for diversity and the defence of human rights. Students must develop competences for a culture of democracy and learning with impact on the individual civic attitude, on the interpersonal relationship and on the social and intercultural relationship, through the “Citizenship and Development” curricular component.

The [Decree-Law no. 55/2018, of 6 July](#), rules, among other, the design, implementation, and assessment of learning in the primary and secondary school curriculum, based on curricular autonomy and the flexibility given to schools to manage the basic curricular matrices by adapting them to the curricular solutions appropriate to the contexts and needs of their students.

This Law is the guarantee of an inclusive school that promotes equality and non-discrimination, whose diversity, flexibility, innovation and personalisation respond to the heterogeneity of students, eliminating obstacles and stereotypes in access to the curriculum and learning, based on a multi-level approach that integrates universal, selective and additional measures to support learning and inclusion. The Essential Learnings are curricular guidance documents that form the basis for planning, implementing and assessing teaching and learning, and aim to promote the development of the areas of competence included in the [Students' Profile by the End of Compulsory Schooling](#).

Regarding Portuguese education system, schools are provided with autonomy and flexibility to manage curriculum development and the organisation and the pedagogical methodologies, respecting the matrix set up by the [Students' Profile](#), the legal framework of [Inclusive Education](#) and the [National Strategy for Citizenship Education \(ENEC\)](#).

The [Pedagogical Guidelines for Kindergartens](#) (0-3 years old) and the [Curriculum Guidelines for Pre-School Education](#) (3-6 years old), guide the construction and management of the curriculum, and share the same foundations and principles.

Moreover, they adopt an inclusive perspective in which they affirm the demand for an educational response to all children, regardless of their nationality, mother tongue, culture, religion, ethnicity, and sexual orientation of family member, their cognitive, motor and sensory differences.

At the level of **education and training for adults**, where all curricula are designed in terms of respecting the principles of non-discrimination, the two key competences standards for adult education and training, basic level and upper-secondary level, include skills associated with education for global citizenship and sustainable development. The key competences standards for basic and upper-secondary levels encompass, respectively, the areas of Citizenship and Employability and Citizenship and Professionalism that promote the development of skills in line with European values, such as global citizenship, human rights, gender equality, democracy, freedom, tolerance and diversity.

☒ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

To support teaching practices on Citizenship and Development [pedagogical resources](#) have been elaborated and published (by DGE – Ministry of Education (ME) in partnership with other public and private institutions), namely Guidelines (Referenciais). The following ones regarding specific domains/topics of Citizenship and Development include contents focused on preventing and eliminating discrimination and respect for diversity (and are available on DGE – ME website:

- [Guidelines on Human Rights](#) (Referencial de Direitos Humanos);
- [Development Education Guidelines](#) (Referencial de Educação para o Desenvolvimento);
- [Guidelines for Health Education](#), which covers the areas of sexuality and gender equality (Referencial de Educação para a Saúde);
- [Safety, Defence and Peace Education Guidelines](#) (Referencial de Educação para a Segurança, a Defesa e a Paz).

Guidelines for Interculturality are under preparation.

Decree-Law no 54/2018, 6 July – [Law on Inclusive Education](#) (in its actual version), identifies the measures to support learning and inclusion, the specific curricular areas, as well as specific resources to be mobilized to meet the educational needs of **each and every child and young person along the school path**, in all different education and training offerings. The measures to support learning and inclusion aim to adapt to the needs and potential of each pupil and to guarantee the conditions for their full realization, promoting

equity and equal opportunities in access to the curriculum, attendance and progression through compulsory schooling.

As a large-scale programme, **TEIP Programme (Priority Intervention Educational Areas)** targeted towards disadvantaged students in response to their needs and expectations. TEIP aims to improve learning outcomes and the quality of educational pathways, preventing low achievement, early school leaving, and absenteeism, while also reducing indiscipline and strengthening relations between schools, families, and the community. This programme covers 146 school clusters (approximately 18% of Portuguese school clusters) in socially and economically disadvantaged areas. Schools integrated into these challenging contexts define improvement plans where priorities such as promoting the adequate welcoming and inclusion of migrant students and their families are identified.

These plans include the diversification of educational offerings to respond to the fundamental needs of all students and ensure their school inclusion. These schools have additional human resources (teachers, psychologists, social workers, mediators, among others) that enable them to implement positive discrimination measures, paying special attention to minority groups such as migrants, especially non-Portuguese speakers, Roma children, and families facing economic or social disadvantages.

To promote measures to address school failure and dropout rates, TEIP school clusters also mobilize specific projects to support contexts of great social diversity as tools for inclusion and improved learning, such as the Learning Communities - Includ-Ed project implemented in Portugal since 2020. This project has facilitated the development of a network of approximately 52 schools, which have implemented measures to promote inclusion through participation, commitment, and equal dialogue among various stakeholders in educational communities, with scientifically proven results.

In July 2023, the Fourth Generation of the Priority Intervention Educational Areas (TEIP4) was launched - Legislative Order No. 7798/2023, dated July 28th - which strengthens and refocuses this measure by granting greater autonomy to educational communities, aiming to improve:

- More flexible and innovative interventions to meet the needs of students and their families;
- Mobilization of endogenous educational resources capable of promoting more sustainable local development.

TEIP4 Programme includes schools located in areas with a high number of children and young people at risk of social vulnerability, meaning schools with:

- A higher number of students in need of school social support;
- More students whose mothers have an educational level below the 12th grade;
- More migrant students.

Through the **Integrated and Innovative Plans to Combat School Failure** (PIICIE) and, later, the Intermunicipal Plans to Promote School Success (PIPSE), municipal and intermunicipal entities (funded by Portugal 2020 and Portugal 2030) created complementary and convergent interventions with the Strategic Action Plans for schools, which allow the reinforcement of multidisciplinary teams and pedagogical measures that promote educational equity.

Since 2020, the introduction of measures integrated into the Personal, Social, and Community Development Plans (PDPSC) has seen schools employing around 1,170 (one thousand, one hundred and seventy) specialised technicians to reinforce these areas, with 35% of these professionals being psychologists, social workers, social educators, cultural and social facilitators, and cultural mediators. Notably, 7% of the 1,400 PDPSC measures specifically target students from minority groups.

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- | | |
|--|--|
| ☒ Legislation provides for inclusive education for all | ☒ Multiple and flexible learning pathways ¹⁷ are provided for |
| ☒ Policy measures aim to enhance inclusion in education for all | ☒ Curricula and teaching methods are inclusive in design ¹⁸ |
| ☒ Teachers are trained on inclusive education ¹⁶ and to value diversity | ☒ Multilingual and intercultural education is supported |
| ☒ Initiatives to address discrimination and promote cultural diversity and mutual acceptance | |
| ☒ Other: | |

Legislation provides for adaptations to the assessment/evaluation process.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Inclusion is a fundamental principle of the Portuguese education system (Students' Profile). One of the priorities of government action is to invest in an inclusive school, where each and every student, regardless of their personal and social situation, can find solutions that enable them to acquire a level of education and training that facilitates their full social inclusion.

This political priority is focused on the right of each student to an inclusive and equitable quality education that meet their own potential, expectations and needs within the framework of a common and plural educational project that provides everyone with participation and a sense of belonging in effective conditions of equity, thus contributing decisively to greater levels of social cohesion.

All students are entitled to adaptations of the evaluation process (according to Decree-Law no. 54/2018, July 6, Article 28, in its current version, both for the internal and external evaluation processes. Students with *significant curricular adaptations* do not participate in national examinations. It is possible to adapt External Assessment Tests and Tests of Equivalence to the Attendance of Basic and Secondary Education according to the students' needs.

(<https://diariodarepublica.pt/dr/detalhe/lei/116-2019-124680588>)

¹⁶ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

¹⁷ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

(<https://files.diariodarepublica.pt/1s/2023/07/14300/0000600009.pdf>)

(https://www.dge.mec.pt/sites/default/files/JNE/despacho_normativo_n.o_4_-_2024.pdf).

The [National Strategy for Equality and Non-Discrimination - Portugal + Igual](#) (ENIND) recognises equality and non-discrimination as a condition for building a sustainable future for Portugal, as a country that effectively realises human rights and fully ensures the participation of all. In this context, it has prioritized intervention in education.

ENIND is supported by three Action Plans that define strategic and specific objectives on non-discrimination based on sex and equality between women and men), to prevent and combat all forms of violence against women, gender violence and domestic violence, and combating discrimination on the grounds of sexual orientation, gender identity and expression, and sex characteristics.

In the educational context, there are other several guidelines for promoting inclusion and combating prejudice and discrimination, with emphasis on the [Sexual Education Law no. 60/2009, of August 6th](#), which establishes the application of sexual education in basic and secondary schools, applied to all levels of compulsory education.

Its purposes are, among others: (i) the improvement of young people's affective-sexual relationships, (ii) respect for differences between people and different sexual orientations and (iii) the elimination of behaviours based on sexual discrimination or violence based on gender or sexual orientation.

These purposes intersect the *National Strategy for Citizenship Education*, in the field of Sexuality, in which it is intended to develop a reflection on relationships based on affection and respect, preventing violence in intimate relationships and risk behaviours.

Moreover, they articulate with the *Students' Profile by the End of Compulsory Schooling*, where freedom, responsibility and integrity should be reference values in an active and responsible citizenship, contributing to healthy interpersonal relationships, leading to future citizens who know and respect the fundamental principles of a democratic society and the rights, guarantees and freedoms on which it is based.

The **National Plan to Combat Racism and Discrimination 2021-2025**, which "*defends equality, strongly opposes segregation, is based on a vision of community that rejects any form of marginalisation of its citizens and fights against structural inequalities*". Education and Culture is one of the ten key areas of intervention in this Plan and one of the specific measures in the document is the creation and distribution of a **Guide** with recommendations for preventing and combating racial discrimination in schools (Please check above the information about the National in the answer to question 1.1).

The [National Strategy to Combat Poverty](#) (Council of Ministers Resolution no. 184/2021, December 29 (Estratégia Nacional de Combate à Pobreza – Resolução do Conselho de Ministros n.º 184/2021, de 29 de dezembro) and its [Action Plan](#) (Council of Ministers Resolution no. 126/2023, October 17 (Plano de Ação da Estratégia Nacional de Combate à Pobreza – Resolução do Conselho de Ministros n.º 126/2023, de 17 de outubro), establish a broad set of activities around different areas of action, of which we highlight the following as a contribution to equal opportunities and inclusion in education:

- Reducing poverty among children and young people and their families;
- Promoting the full integration of young adults into society and the systemic reduction of their risk of poverty.

This Strategy is articulated with other strategies, plans and programmes whose areas of action intersect, namely:

- National Strategy for Equality and Non-Discrimination 2018-2030 “Portugal + Equal”;
- National Implementation Plan for the Migration Pact;
- National Strategy for the Inclusion of People with Disabilities 2021-2025;
- National Strategy for the Integration of Roma Communities 2013-2022;
- National Plan to Combat Racism and Discrimination 2021-2025 — “Portugal against Racism”;
- National Strategy for the Rights of the Child 2021-2024, and
- National Youth Plan 2018. In the area of education, we underline the articulation with the 21|23 Escola+ Plan, materialised through the Council of Ministers Resolution No. 90/2021, of July 7.

As a large-scale programme, **TEIP Programme (Priority Intervention Educational Areas)** targets disadvantaged students in response to their needs and expectations. It aims to improve learning outcomes and the quality of educational pathways, preventing low achievement, early school leaving, and absenteeism, while also reducing indiscipline and strengthening relations between schools, families, and the community (Please check above the information about the National in the answer to question 1.1).

Through the **Integrated and Innovative Plans to Combat School Failure (PIICIE)** and, later, the Intermunicipal Plans to Promote School Success (PIPSE), municipal and intermunicipal entities (funded by Portugal 2020 and Portugal 2030) created complementary and convergent interventions with the Strategic Action Plans for schools, which allow the reinforcement of multidisciplinary teams and pedagogical measures that promote educational equity.

There are integration or inclusion strategies/policies for all migrant children/young people and, in particular, for applicants for and beneficiaries of international protection, unaccompanied foreign minors (MENA) and, more recently, for children and young people displaced from Ukraine and beneficiaries of temporary protection or international protection within the framework of compulsory schooling.

Schools may request the hiring of specialised professionals, such as psychologists, mediators, social workers, speech therapists or others, whenever they assess that taking measures to ensure the educational success of students requires their contribution. This hiring is done using the hourly credit allocated to each School Cluster, whose main purpose is to reinforce, recover, or deepen students' learning.

The Ministry of Education Science and Innovation (MECI) has been implementing educational responses which aim to facilitate the reception and integration of migrant and refugee children and young people into Portuguese schools and include:

- (i) Granting equivalence to foreign qualifications;
- (ii) Reinforcement of Portuguese language learning and progressive integration into the curriculum;
- (iii) School social benefits (families with insufficient economic resources may receive allowances for school transportation, food, textbooks and school supplies. School social support is also available for upper secondary school students.

To facilitate the reception and integration of these students, schools promote the creation of multidisciplinary teams, built according to available resources, to analyse, propose and develop adapted strategies. School psychologists also strive to cooperate with the Centres for Qualification

(Centro Qualifica) to foster the integration of students who follow a vocational pathway (between 15 and 18 years of age).

Further information on this subject can be found [here](#).

Below we summarize the adopted measures for migrant children:

- All children and young people that arrive in Portugal are integrated into the Portuguese Education System even if they are undocumented;
- Simplifying procedures for granting equivalences of foreign qualifications and/or positioning and insertion each year of schooling;
- Everyone takes Portuguese classes as second language (PL2);
- Progressively integrating children/students into the Portuguese curriculum and reinforcing learning of the Portuguese language.

The role of multidisciplinary teams such as specialized teachers/ technicians, psychologists, social workers, interpreters, monitors, among others in order to develop strategies suited to the specific situations of each child/student.

Whenever necessary, children/young people receive free psychological support. Likewise, there is also economic support for meals and school supplies through School Social Assistance. Pupils also have free computers, free internet connectivity, and school textbooks. It is important to note that all refugee/migrant children/pupils have school access and all the benefits that all other children in Portugal have.

Learning the Portuguese language is considered an essential factor in promoting a successful educational career in Portugal for children whose mother tongue is not Portuguese. Therefore, the integration and kindergarten attendance of these children is essential and should start as early as possible. The document [Integration of refugee children in pre-school education](#) has guidelines that reinforce the urgent need to integrate these children in pre-school education, as well as on how to promote the learning of the Portuguese language and involve the families of refugee children in their children's educational process.

It is also recognized that the inclusion of migrant communities in kindergarten could bring great benefits in terms of fairness and equal opportunities, respect and appreciation of the mother tongues and cultures of children and their families. The document [Inclusion of migrant pupils in education](#) aims to support schools in these processes, with a view to the successful integration, well-being, development and learning of children.

[Legislative Order No. 2044/2022 of 16 February](#) sets the requirements to ensure support aimed at **students whose mother tongue is not Portuguese**. The changes introduced allow flexibility in the language teaching methods and enhance different forms of integration.

Portuguese as a foreign language (PL2) aims all students who have recently enrolled into our educational system and do not have Portuguese as their first language or Portuguese as an official language of instruction.

Positioned at the Beginners (A1, A2) or Intermediate (B1) level of language proficiency on a diagnostic assessment, these students attend PL2 instead of Portuguese if there are at least 10 students in these conditions at school (forming a group requires a minimum of 10 students). If this is not possible, they are enrolled in PL2 but they are included in a Portuguese class instead, following the Essential Learning of PL2 in the corresponding language proficiency levels (A1, A2 or B1). They may additionally, benefit from PFL support classes.

Moreover, the Portuguese **education and training system** foresees that young people.

- i) whose mother tongue is not Portuguese,
- ii) have not had Portuguese as their language of schooling and
- iii) do not have a knowledge of the Portuguese language corresponding to the level of proficiency B2 or C1,

upon entering any of the education and training pathways for young people, may attend the subject of Portuguese Non-Native Language, until they reach proficiency level B2.

Portuguese courses for non-native speakers were created in 2020 (Ordinance no. 183/2020, of 5 August) and revised in 2022 (Ordinance no. 184/2022, of 21 July) to address the learning needs of migrant citizens, aged 16 or over, whose mother tongue is not Portuguese and/or who do not have the necessary skills in Portuguese.

These courses facilitate their social integration, helping them to find a job, to improve their communication skills and to understand their basic civil rights. Language courses are organized according to training standards included in the National Catalogue of Qualifications, at levels A1 to B2 of the Common European Framework of Reference for Languages (CEFR).

In Portugal, the system for granting equivalence of qualifications from foreign education systems to qualifications from the Portuguese education system at primary and secondary level is defined in [Decree-Law no. 227/2005, of 28/12](#).

A [Ukraine Circular Letter](#) (Ofício-Circular 10976/2022/DGE-DSDC-ECE) has been published on the granting of equivalences and the integration of children and young people into the Portuguese education system.

Below are some examples of the initiatives carried out by schools to integrate Roma students:

- “Promotion of Equity and Inclusion – Pedagogical Innovation Project *Romano Inclusivus* which included innovative welcoming actions for children/ students and guardians, training activities, events, and cultural weeks with students, parents, teaching, and non-teaching staff;
- *Us and the World - Multicultural* – This initiative aimed to develop interpersonal skills, the acceptance of others, empathy, and the appreciation of differences as an asset. Thematic sessions held with children/ students and families, involved monitoring of social circumstances and the integration of students from other communities. These activities reduced school absenteeism significantly and improved academic results, particularly for migrant and Roma students;
- *Learning From Others* – Specific programs designed to support students, based on difficulties and skills presented by students and that needed to be developed. Students were monitored in small groups and/or in individualized sessions. Parental awareness sessions, thematic sessions with families, and awareness sessions about bullying were also conducted. This measure had a significant impact, allowing close monitoring of students from Roma communities, who tend to exhibit absenteeism and frequent behavior incidents, as well as a lack of interest in curricular activities;
- *Eduk’ARTE* is a measure covering Roma and migrant students based on musical expression, dance, cultural, artistic, and sports activities, along with support for study sessions, entrepreneurship, and intercultural dialogue. Diagnoses of socio-family intervention are carried out, and referrals are performed in conjunction with other entities. This measure had a positive impact on the attendance of Roma students and their academic success, as well as on the training for global citizenship for all students and school staff involved.

As regards specialised support, the Directorate-General for Education (DGE) produced and published two online educational guides:

- [Promover a inclusão e o sucesso educativo das comunidades ciganas – Guião pedagógico para a educação pré-escolar](#) (*Promoting the inclusion and the educational success of Roma communities – Preschool education*) is an educational guide created with guidelines and positive practices for the integration of Roma children into preschool education.
- [Promover a inclusão e o sucesso educativo das comunidades ciganas](#) (*Promoting the inclusion and the educational success of Roma communities*) with tools for teachers and youth officers for working with Roma children and young people, in formal and non-formal contexts.

The Directorate-General for Education (DGE) also organised the following training courses:

- [A inclusividade e a interculturalidade como dimensões críticas da educação das crianças e jovens ciganos](#) (*Inclusiveness and interculturality as critical dimensions of Roma children' and young people's Education*);
- [Estratégia Nacional para a Integração das Comunidades Ciganas e Educação Patrimonial: Educação e cultura em espaço escolar](#) (*National Strategy for the Integration of Roma Communities and Heritage Education: Education and culture in schools*).

Portugal is one of the partner countries of the [Project INSCHOOL - Inclusive Schools: Making a Difference for Roma Children](#), a joint project of the European Union and the Council of Europe that aims to support the design and implementation of national inclusive education policies and innovative inclusive education practices, in line with European standards and principles for quality inclusive education.

REEI Programme – Network of Schools for Intercultural Education -The Ministry of Education Science and Innovation (MECI), through Directorate-General for Education (DGE), is part of the REEI consortium (together with Agency for Integration, Migration and Asylum (former High Commissioner for Migration) and the Aga Khan Portugal Foundation.

The programme aims to create a network for sharing practices between schools (public, private at cooperative schools) aiming at intercultural education, by promoting the reception, integration and educational success of all children and young people from pre-school to upper secondary education. Moreover, it aims to develop respect for differences and the establishment of positive relationships of interaction and rapprochement between students and other members of the educational community from different cultures.

Currently, REEI Programme is established to run from 2023 to 2027 (with a network of 67 schools, the same schools than during 2021-2024). The network organizes Encounters, inspiration sessions with show cases (in person and online), sharing practices and peer learning processes.

In Portugal, there are educational programmes for children and students that are unable to attend only one school or face-to-face classes (traveller education and distance learning). **Distance Learning (E@D)** is regulated by Ministerial Order no. 359/2019, of 8 October, and aims to meet the specific needs, in terms of compulsory schooling (primary and secondary education), of students who are unable to attend face-to-face classes, during primary or secondary education.

E@D works through a digital platform made up of virtual classrooms, with classes organized by target audience, year and cycle/level. On this platform, the b-learning environment allows the main activity centered on developing solutions tailored to the needs of each student. Personalized support is provided through tutor teachers, in conjunction with the teachers responsible for each subject, with reference to the curriculum documents in force in the Portuguese education system.

Moreover, the **National Plan for Cinema (Portugal)** includes two Portuguese cinematographic works, which are available to all Portuguese schools: two short movies from the Portuguese filmmaker Leonor Teles, which focus in Roma issues. Both films are accessible on a film-streaming platform for schools. Between 2021 e 2023, these two films had around 11405 spectators in 426 movie sessions in schools. The *National Plan for Cinema* (Portugal) published a pedagogical dossier about the two short films by Leonor Teles: “Rhoma Acans and Balada de Um Batráquio”, including pedagogical suggestions to help Portuguese teachers to work with students and deal with these issues. The pedagogical dossier is available in the PNC site: <https://pnc.gov.pt/13-duas-curtas-metragens>.

National Arts Plan, created in 2019, aims among other objectives, to foster collaboration among artistic agents, the educational community, and other stakeholders, in order to design teaching and learning strategies that promote an inclusive curriculum, without barriers between the school and its surroundings and has already engaged 125 thousand students and 20 thousand teachers. The project extends to 430 school clusters - more than 50% of the total - spread across 136 municipalities.

The in-service teacher training, organised by the Directorate-General for Education, continues to address these issues, providing teachers with up-to-date scientific knowledge and didactic and pedagogical suggestions that foster the development of skills in students and that promote the exercise of democratic, humanistic, inclusive, responsible citizenship that defends human rights and combats racism and all forms of discrimination. In the context of teaching about the Holocaust, the Directorate-General for Education is co-organising two training courses with the “*Mémorial de la Shoah*”, each year, for teachers from all subject groups, which also address the themes of racism, Portuguese colonialism, and the historical past of the Roma communities in Portugal and refugees in Portugal (past and present).

Long before the Decree-Law no 54/2018 came into effect, the Directorate-General for Education (DGE) provided teachers’ trainers training on the inclusive education framework. This allowed a high percentage of school stakeholders to share and discuss the underlying concepts and methodological concepts of the legislative framework. Since 2018, DGE has been promoting several training sessions for school leaderships in the inclusive education field.

Continuous training of directors, teachers and other school professionals is crucial to support them in implementing and achieving the necessary changes. Inclusive education goes beyond having learners in mainstream public schools, also being a matter of educational culture and strategy.

Capacity-building of those involved in inclusive education, especially school clusters leaders, specialised teachers and teachers, is probably one of the most relevant factors for the successful implementation of inclusive education.

Professionals who are part of the multidisciplinary team to support inclusive education (EMAEI) have also been receiving training on inclusive education. The Ministry of Education Science and Innovation (MECI) has provided this training through a highly selected set of trainers to:

- a) Empower professionals for the assessment of learning;
- b) Analyse / reflect on learning assessment tools and practices;
- c) Promote the development of knowledge in the field of assessment of, and for, learning;
- d) Define explicit criteria that serve as benchmarks for decision making;
- e) Contribute to the adoption of systematic assessment practices as a privileged resource to improve teaching and learning;

- f) Design support instruments for collecting information to support decision-making;
- g) Empower for the creation of mechanisms for self-regulation of learning;
- h) Develop collaborative and reflective work skills among professionals and problem solving.

A [website](#) is available with resources for capacity development on inclusion:

Each year, the Ministry of Education Science and Innovation (MECI), attributes the “[HEALTHY SCHOOL LABEL](#)” (Selo de Escola Saudável - recognizing the merit of schools that act for the promotion of healthy behaviours, taking into account age, gender and sociocultural factors).

MECI is also attentive to all forms of bullying and violence, focusing on their identification and prevention, with the creation of a [support website](#), with resources for the entire educational community.

The “School Without Bullying | School Without Violence,” label (Selo Escola Sem Bullying | Escola Sem Violência) rewards schools that develop work in this regard.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

Access to kindergarten and pre-school education is still not widespread. Therefore, under [Order no. 8251/2024 of 14 June](#), a working group was set up to study and present proposals for action with a view to generalising access to early childhood education, as well as the quality of care in crèches and kindergartens. This working group includes representatives from various entities within the Ministry of Education, Science and Innovation (MECI) and the Ministry of Labour, Solidarity and Social Security (MTSSS).

The need to strengthen in-service teacher training on non-discrimination, equality and inclusion, should also be mentioned.

Other relevant general measures, including gender equality

- | | |
|---|--|
| ☒ Legislation provides for gender equality in education | ☐ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education |
| ☒ Policy measures aim to enhance gender equality | ☐ Re-entry programmes for young mothers are provided for |
| ☐ Gender-responsive education sector planning is undertaken | ☐ Ensuring safe and adequate gender-sensitive sanitation facilities ²⁰ |
| ☒ Providing positive or affirmative action measures | ☒ Curricula are rid of all stereotypes ²¹ and bias |
| ☒ Providing financial incentives and fellowships | |

²⁰ 'Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

²¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

- | | |
|---|---|
| ☐ Teachers are trained (initial and in-service) on gender equality | ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM) |
| ☐ Teachers are trained to combat stigmatisation ¹⁹ | ☒ Ensuring gender parity in technical and vocational training education and training (TVET) |
| ☐ Other: | |

To guarantee the scientific, pedagogical, and didactic quality of student's textbooks, as didactic-pedagogical resources, the government implemented procedures of assessing and certification. Article 11 of [Law no. 47/2006, of 28 August](#), in its current wording, states that the design and preparation of educational resources, namely school textbooks, must respect and obey the assessment criteria for their certification, in terms of their:

- a) Scientific, linguistic and conceptual rigour;
- b) Adequacy for the development of competences defined in the national curriculum;
- c) Conformity with the objectives and contents of the programmes or curricular guidelines in force;
- d) Pedagogical and didactic quality, particularly in terms of method, organisation, information and communication;
- e) Possibility of re-use and suitability for the planned period of validity;
- f) Material quality, namely robustness and weight,

as well as constitutional principles and values, namely non-discrimination and gender equality, the social and cultural diversity of the universe of students for whom the textbooks are intended.

These criteria are also specified in [Order no. 4947-B/2021, of 16 May](#), in its current wording.

A similar situation is faced by teachers in the selection, assessment and adoption of textbooks, which, in accordance with the criteria laid down in the law, must consider citizenship education, specifically that they must be free from cultural, ethnic, racial, religious and sexual discrimination and respect the principle of gender equality.

Please check above the information about the National Plan to Combat Racism and Discrimination 2021-2025 in the answer to question 1.2.

As part of this Plan, a [Guide to Preventing and Combating Racial Discrimination in Schools](#) has been drawn up. The approach proposed in this Guide must be integrated into the school's strategy, which includes other equally important dimensions, such as promotion and valorisation of interculturality, gender equality and prevention and combating other forms of discrimination.

Regarding **Higher Education**, the following relevant measures also include:

- [HE in Portugal 2021/2023](#) (PT version only)
Portuguese Higher Education data has been published in a summary report, available [here](#), presenting the most relevant information about the higher education system in Portugal, focusing on its organizational structure, networking, student's access and staff.

- [Revision of the system of access HE 2022/2023](#) (PT version only)

From this publication several conclusions were taken resulting from this review process that confirm the centrality of the access to higher education has on the lives of thousands of young people who every year begin studies in Portuguese higher education system.

Access to Portuguese higher education, whether by young people have just completed secondary education, whether by older, national or international institutions, through the various entry routes available to them, is a process that will mark indelibly the personal and professional path of these students, with a significant impact in capturing and developing human potential and promoting a more prosperous, less unequal and more inclusive.

Additional information may be found at

https://wwwcdn.dges.gov.pt/sites/default/files/revisao_do_sistema_de_acesso_ao_ensino_superior_-_2022-2023_0.pdf

- Programs [Impulso Jovens STEAM](#), [Impulso Adultos](#) and [Impulso MAIS Digital](#)

Both Impulso Jovens STEAM and Impulso Adultos programs aim to support initiatives to be developed by higher education institutions, in partnership or consortium with companies, public and/or private employers and including local, regional and national authorities and public entities:

Impulso Jovens STEAM aims to promote and support initiatives aimed exclusively at increasing higher education among young people in the areas of science, technology, engineering, arts and mathematics, through the offering of degrees and other initial higher education training.

Impulso Adultos aims to support the conversion and updating of skills of active adults, through short-term training in higher education, at initial and postgraduate levels, in all areas of knowledge, as well as training throughout life.

The Impulso Mais Digital Program aims:

- i) encourage the modernization of the higher education network, with an emphasis on key areas for the country's resilience and increasing skills in society and companies, particularly in digital and technological areas, through a greater number of training offers from Higher Education Institutions and a greater number of young people and adults trained and requalified, reinforcing and accelerating the implementation of the "Impulso Jovens STEAM e Adultos" programs;
- ii) to modernize pedagogical practices in higher education, with a view to promoting academic success, reducing dropout rates and student well-being, as well as technological updating and the modernization of training conditions, the promotion of sustainable agriculture, improving health systems, the green transition and environmental sustainability.

For more information, see also:

<https://programasimpulso.dges.gov.pt/> (PT version only)

- [Study “Success and Inclusion: measures and initiatives to Support Students in HE”](#)
(PT version only)

This study, aimed to identify measures and initiatives to support for higher education students at national level, by public Higher Education Institutions (IESP) and European, collect examples of good practices that can provide support for decision-making and design of a set of actions to be implemented by different stakeholders at national level. It has comprised a Survey and analysis of information about support to higher education students, in practice at the level European and national (IESP) covering the following topics:

- Social and economic support;
- Promotion of health and well-being;
- School success and integration;
- Entrepreneurship;
- Insertion into the market work;
- Transversal skills;
- Disadvantaged groups;
- A Summary of national initiatives or projects (IESP) highlight that they may constitute good practices and that allow the design of a national survey of a frequency later to define;
- A Summary of implemented measures/initiatives by European Union (EU) countries, with collection of inspiring elements and good practices, which can serve as a basis for recommendations or guidance future, and
- Identification/suggestion of improvement processes information made available, measures and initiatives for better integration and performance of higher education students, who can contribute for a process of greater balance and well-being between the academic, personal and professional components.

More information available at :

https://wwwcdn.dges.gov.pt/sites/default/files/sucesso_e_inclusao_medidas_e_iniciativas_de_apoio_aos_estudantes_do_ensino_superior_rev_am_dez_vfinal.pdf

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

- Does the legal minimum age for marriage conform to international standards (18 years) ²²:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☐ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

- | | |
|--|--|
| ☒ Legislation provides for the right to education of national minorities | ☐ Teachers are trained on intercultural education |
| ☒ Policy measures aim to enhance the right to education of national minorities | ☐ Teachers are trained to combat stigmatisation ²⁴ |
| ☒ Policy elaboration includes consultations with local communities | ☒ Multilingual and intercultural education are supported |
| ☐ The right to carry out their own educational activities is legally guaranteed for national minorities | ☐ Native language instruction is ensured for national minorities |
| ☐ Educational standards are established for educational institutions run by national minorities | ☐ Adapting curricula and teaching and learning methods to their needs for national minorities |
| ☐ Positive or affirmative action measures are provided for national minorities | ☒ Curricula are rid of all stereotypes ²⁵ and bias |
| ☒ Financial incentives and fellowships are provided for national minorities | |
| ☒ Other ²³ : | |

The European Strategy "A Better Internet for Kids" forms the foundation that guides the actions of the Portuguese Safer Internet Centre, promoting a safer and healthier digital environment, with special attention to children and young people in vulnerable situations.

In this context, a national campaign titled "Disinformation in the Context of War" was implemented upon the arrival of several students who were refugees from the war in Ukraine.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

²³ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

²⁴ Supra note 15.

²⁵ Supra note 16.

As mentioned (question 1.2), [Interculturality](#) is one of the six domains (topics) of the curricular component 'Citizenship and Development' that is compulsory for all the school education levels and cycles. One of the aims of this domain (topic) is to understand the causes and forms of discrimination to promote intercultural dialogue, in our interdependent and globalised world, and its relationship with migration, ethnicity and inclusion.

Portugal's commitment to an inclusive education and schools' inclusion is a priority. Each school is encouraged to *"recognize the added value of their students diversity, finding ways to deal with that difference, adjusting the teaching processes to the individual characteristics and specific needs of each student, mobilising the means at their disposal to ensure that everyone learns and participates in the life of the educational community"* ([Decree-Law no.54/2018](#), Preamble).

In the constitution of groups (preschool education) and classes (primary and secondary education), children's and young people's heterogeneity should be *"respected, and the school director, in consultation with the pedagogical council, may take into account other criteria that are decisive for promoting success and reducing school early leaving"* ([Legislative Order no.10-A/2018, of 19th June, article 2, no. 2](#)).

Please check above (question 1.2) the **measures concerning Roma students**, the **National Plan to Combat Racism and Discrimination 2021-2025** and the **Guide to Preventing and Combating Racial Discrimination in Schools**.

This Plan *"is the result of a multisectoral effort, involving all governmental departments, and stemming from the report and concrete proposals by the working group that was created for this purpose, consisting of experts from different areas, representatives of antiracist associations and of Roma communities and migrants"*.

The Guide was drawn up after consulting professionals, teachers and non-teachers and representatives of different immigrant and ethnic minority communities, as well as ethnic minorities, as well as pupils from different stages of education through the Maria Rosa Foundation's ComParte project ([Projeto ComParte da Fundação Maria Rosa](#)).

In Portugal, children and young people from Roma communities speak Portuguese. If there are Roma children/young people whose native language is not Portuguese, the same educational measures apply as for migrant and refugee children (Please check the information above on PL2 in question 1.2).

Economic support for meals and school supplies through School Social Assistance, free computers and internet connectivity and school textbooks are also provided. It is important to note that all refugee/migrant children/pupils have school access and all the benefits that all other children in Portugal have.

According to The [Decree-Law no. 55/2018, of 6 July](#), curricular autonomy and the flexibility is granted to schools to manage the basic curricular matrices by adapting them to the curricular solutions appropriate to the contexts and needs of their students. This Law is the guarantee of an inclusive school that promotes equality and non-discrimination, whose diversity, flexibility, innovation and personalization respond to the heterogeneity of students, eliminating obstacles and stereotypes in access to the curriculum and learning, based on a multi-level approach that integrates universal, selective and additional measures to support learning and inclusion.

As mentioned above (question 1.2), to guarantee the scientific, pedagogical, and didactic quality of student's textbooks, as didactic-pedagogical resources, the government implemented procedures of assessing and certification.

Regulations that define assessment criteria for the certification of school student's textbooks were created/disseminated, being "Values" specifically considered in its paragraph c) *"Promoting education for citizenship, not presenting cultural, ethnic, racial, religious and sexual discrimination; combating stereotypes, valuing diversity, interculturality and multiperspectivism, as well as the principle of gender equality."*

As we have already mentioned, similar situation is faced by teachers in the selection, assessment and adoption of textbooks, which, in accordance with the criteria laid down in the law, must consider citizenship education, specifically that they must be free from cultural, ethnic, racial, religious and sexual discrimination and respect the principle of gender equality.

In-service teacher training, organised by the Directorate-General for Education (DGE), continues to address these issues, as above mentioned.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

Indigenous people:

- | | |
|--|--|
| ☐ Legislation provides for the right to education of indigenous people | ☐ Financial incentives and fellowships are provided for indigenous people |
| ☐ Policy measures aim to enhance the right to education of indigenous people | ☐ Teachers are trained on intercultural education |
| ☐ Policy elaboration includes consultations with local communities | ☐ Teachers are trained to combat stigmatisation ²⁶ |
| ☐ The right to carry out their own educational activities is legally guaranteed for indigenous people | ☐ Multilingual and intercultural education are supported |
| ☐ Educational standards are established for educational institutions run by indigenous people | ☐ Native language instruction is ensured |
| ☐ Positive or affirmative action measures are provided for indigenous people | ☐ Adapting curricula and teaching and learning methods to their needs for indigenous people |
| ☐ Other: | ☐ Curricula are rid of all stereotypes ²⁷ and bias |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

²⁶ Supra note 15.

²⁷ Supra note 16.

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸:

- | | |
|--|--|
| ☒ Legislation provides for their right to education | ☒ Financial incentives and fellowships are provided for |
| ☒ Policy measures aim to enhance their right to education | ☐ Auxiliary assistance is provided |
| ☒ Inclusion in mainstream schools is ensured | ☒ Multiple and flexible learning pathways ³¹ are provided |
| ☒ Positive or affirmative action measures are provided for | ☒ Curricula are rid of all stereotypes ³² and bias |
| ☒ All administrative barriers to access education are removed | ☐ Accelerated learning programmes are provided |
| ☐ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers ²⁹ are provided for | ☐ Non-formal and/or alternative education programmes are provided |
| ☐ Teachers are specifically trained to ensure their inclusion | ☒ Language classes to newcomers are provided for |
| ☐ Teachers are trained to combat stigmatisation ³⁰ | ☒ Multilingualism and intercultural education are encouraged |
| ☒ Other: | |

Everyone takes Portuguese classes as second language (PL2).

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

As mentioned (question 1.2), [Interculturality](#) is one of the six domains (topics) of the curricular component 'Citizenship and Development' that is compulsory for all the school education levels and cycles. One of the aims of this domain (topic) is to understand the causes and forms of discrimination to promote intercultural dialogue, in our interdependent and globalised world, and its relationship with migration, ethnicity and inclusion.

As mentioned before, Portuguese as a foreign language (PL2) aims at all students who have recently enrolled into our educational system and do not have Portuguese (i) as their first language or (ii) as an official language of instruction. They are positioned at the Beginners (A1, A2) or Intermediate (B1) level of language proficiency on a diagnostic assessment. These students attend PL2 instead of Portuguese if

²⁸ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

²⁹ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

³⁰ Supra note 15.

³¹ Supra note 13

³² Supra note 16.

there are at least 10 students in these conditions at school (forming a group requires a minimum of 10 students). If this is not possible, they are enrolled in PL2 but they are included in a Portuguese class instead, following the Essential Learning of PL2 in the corresponding language proficiency levels (A1, A2 or B1). In addition, they may benefit from PFL support classes.

[Decree-Law no. 55/2018, July 6](#), rules, among other, the design, implementation, and assessment of learning in the primary and secondary school curriculum, based on curricular autonomy and the flexibility given to schools to manage the basic curricular matrices by adapting them to the curricular solutions appropriate to the contexts and needs of their students.

This Law is the guarantee of an inclusive school that promotes equality and non-discrimination, whose diversity, flexibility, innovation and personalisation respond to the heterogeneity of students, eliminating obstacles and stereotypes in access to the curriculum and learning, based on a multi-level approach that integrates universal, selective and additional measures to support learning and inclusion.

As mentioned before (question 1.1), the **TEIP Programme (Priority Intervention Educational Areas)** targeted towards disadvantaged students in response to their needs and expectations. TEIP aims to improve learning outcomes and the quality of educational pathways, preventing low achievement, early school leaving, and absenteeism, while also reducing indiscipline and strengthening relations between schools, families, and the community. This programme covers 146 school clusters (approximately 18% of Portuguese school clusters) in socially and economically disadvantaged areas. These schools have additional human resources (teachers, psychologists, social workers, mediators, among others) that enable them to implement positive discrimination measures, paying special attention to minority groups such as migrants, especially non-Portuguese speakers, Roma children, and families facing economic or social disadvantages.

Integration or inclusion strategies/policies for all migrant children/young people is considered, especially for applicants to and beneficiaries of international protection, unaccompanied foreign minors (MENA). More recently, the same strategies/policies apply for children and young people displaced from Ukraine, and beneficiaries of temporary protection or international protection, within the framework of compulsory schooling (for more details, please check above the information about this subject).

In Portugal, the system for granting equivalence of qualifications from foreign education systems to qualifications from the Portuguese education system at primary and secondary level is defined in [Decree-Law no. 227/2005, of 28/12](#).

A [Ukraine Circular Letter](#) (Ofício-Circular 10976/2022/DGE-DSDC-ECE) has been published on the granting of equivalences and the integration of children and young people into the Portuguese education system.

[Decree-Law on inclusive education](#), in its current version, applies to **all children and young students** from **all** the school clusters and non-grouped schools, professional schools and establishments of pre-school education and basic and secondary education of private, cooperative and solidarity networks. The law on inclusive education reflects a move away from the rationale that it is necessary to categorise in order to intervene. Rather, it seeks to ensure that all learners reach the Students' Profile, which is achieved through reasonable accommodations, i.e., differentiated learning paths that allow each learner to progress in the curriculum in a way that ensures their educational success.

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☐ No

- Please elaborate:

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

People with disabilities:

- | | |
|---|--|
| ☒ Legislation provides for their right to education | ☒ Mainstream teachers are specifically trained on disabilities |
| ☒ Policy measures aim to enhance their right to education | ☒ Teachers are trained to combat stigmatisation ³³ |
| ☒ Inclusion in mainstream schools is ensured | ☒ Auxiliary assistance is provided |
| ☒ Special schools are used as resource centers to inclusive schools | ☒ Curricula and teaching and learning methods are adapted |
| ☒ Positive or affirmative action measures are provided | ☒ Curricula are rid of all stereotypes ³⁴ and bias |
| ☒ Financial incentives and fellowships are provided | ☒ Education infrastructure and learning materials are adapted |
| ☐ Other | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

As mentioned above, [Decree-Law on Inclusive Education](#), in its current version, applies to **all children and young students** from **all** the school clusters and non-grouped schools, professional schools and establishments of pre-school education and basic and secondary education of private, cooperative and solidarity networks.

The law on inclusive education reflects a move away from the rationale that it is necessary to categorise in order to intervene. Rather, it seeks to ensure that all learners reach the Students' Profile, which can be achieved through reasonable accommodations, i.e., differentiated learning paths that allow each learner to progress in the curriculum in a way that ensures their educational success.

Therefore, according to the law on inclusive education, there is no need to have a formal diagnosis to receive specific supports. Categorisation systems for learners have been abandoned, including the "categories associated to special educational needs". As such, it removes segregation and discrimination based on diagnosis or clinical labels, and special legislation frameworks for learners with special needs from the educational system. Moreover, it abandons the restricted concept of "support measures for learners with special educational needs". It takes a broader view, implying a whole school approach, which considers multiple dimensions and the interactions between them.

The access of students in need of some additional support to the mainstream school is ensured. Nowadays, approximately 98.9% of students in need of additional support attend mainstream schools. These students

³³ Supra note 15.

³⁴ Supra note 16.

attend classes with their peers with no specific needs – and for whom are mobilised selective or additional support measures for learning and inclusion, and often, therapeutic support.

[Legislative Order no. 6/2018, April 12](#), in its current version, establishes the registration and renewal procedures and the rules to be observed in the distribution of children and students in each school and classroom. It also sets out the norms for organising groups/classes in preschool and compulsory education to, and in line with the qualitative and inclusive dimension of education, enhance academic success. According to this Legislative Order, students with specific educational needs are prioritised for enrolment, in accordance with the articles 27 and 36 of [Decree-Law no. 54/2018, July 6](#), in its current version).

To ensure specialised support for learners, specialised support staff supporting the school is available, often provided by the Resource Centres for Inclusion (Centros de Recursos para a Inclusão, CRI). One of the fundamental pillars of the strategy for the inclusion of learners in need of additional support in public schools is the specialised professional support of the CRI. (Article 18 - https://www.dge.mec.pt/sites/default/files/EEspecial/dl_54_2018_en_version_dge.pdf)

There are no financial incentives for schools welcoming more diverse student groups. Students shall attend the school of their geographic residence area, and no school can refuse a student's registration based on his/her characteristics.

In-service training is both a right and a duty and aims at upgrading and updating teachers' professional knowledge and competences. [Decree-Law no. 22/2014, February 11](#) established the legal regime for the training of teachers.

In-service training became oriented towards improving the quality of teaching by making the training system focused on priorities identified by the school and its educational community. All teachers should do some training in their area of intervention regularly. School clusters define their priorities and needs regarding the domains considered relevant to improve teachers' competences and knowledge. Such diagnosis is usually made in close cooperation with the Teachers' Training Centre (Centro de Formação de Associação de Escolas, CFAE) to which the school cluster is associated with, and it is the starting point for the definition and design of the training plan of both the schools and the training centres.

Long before the Decree-Law no 54/2018 came into effect, the Directorate-General for Education (DGE) provided teachers' trainers training on the inclusive education framework. It allowed a high percentage of school stakeholders to share and discuss the underlying concepts and methodological concepts of the legislative framework. Since 2018, DGE has been promoting several training sessions for school leaderships in the inclusive education domain.

Continuous training of directors, teachers and other school professionals is crucial to support them in implementing and achieving the necessary changes. Inclusive education goes beyond having learners in mainstream public schools; it is also a question of educational culture and strategy.

Capacity building of those involved in inclusive education, especially school clusters leaders, specialised teachers and teachers, is probably one of the most relevant factors for the successful implementation of inclusive education.

Professionals who are part of the multidisciplinary team to support inclusive education (EMAEI) have also been receiving training on inclusive education. The Ministry of Education, Science and Innovation (MECI) provided this training through a highly selected set of trainers to:

- a. empower professionals for the assessment of learning;
- b. analyse / reflect on learning assessment tools and practices;

- c. promote the development of knowledge in the field of assessment of, and for, learning;
- d. define explicit criteria that serve as benchmarks for decision making;
- e. contribute to the adoption of systematic assessment practices as a privileged resource to improve teaching and learning;
- f. design support instruments for collecting information to support decision-making;
- g. empower for the creation of mechanisms for self-regulation of learning;
- h. develop collaborative and reflective work skills among professionals and to solve problems.

In each CFAE, there is an increasing focus on creating groups of internal trainers to boost the level of qualifications of educational staff and ensure quality training in the areas identified as priorities by the schools themselves. The quality of training is guaranteed via a variety of regulation mechanisms, such as monitoring activities conducted by the Directorate-General for School Administration (DGAE) and external evaluation is under the responsibility of the Inspectorate (IGEC).

A [website](#) is available with resources for capacity development on inclusion.

Auxiliary assistance is provided in mainstream schools according to [Ordinance no 73-A/2021, March 30](#).

The national curriculum is to be implemented by means of specific methodologies respecting each student's learning pace and individuality. With the main priority of providing a quality education for all, it is crucial to consider the curriculum as a tool that schools can manage and develop, so that all students can achieve the competences outlined in the Students' Profile by the End of Compulsory Schooling.

In addition to [Decree-Law no 55/2018, July 6](#), the [law on Inclusive Education](#) points out the need of each school to recognise the added value of the diversity of its students, finding ways to deal with that difference, adjusting the teaching processes to the individual characteristics and conditions of each student and mobilising the means available so that everyone learns and participates in the life of the educational community.

This Decree-Law provides schools with the necessary autonomy to meet each student's needs by implementing different measures (universal, selective or additional measures).

Assistive products/devices are available to enable participation in the learning process and to access curriculum. At schools' request, the Information and Communication Technology Resource Centres (Centro de Recursos de Tecnologias da Informação e Comunicação, CRTIC) carry out the assessment of students' needs, for granting the assistive products/devices, that are financed by the Ministry of Education, under [the System of Assignment of Assistive Products](#) (Legislative Order No. 7197/2016, June 1). CRTIC also produce adapted material and train teachers to use special software for different disabilities.

The [Ministry of Education's Resource Centre \(RC\)](#) produces schoolbooks in Braille and large font.

All schools are required to have disability-friendly access points ([Decree-Law no. 163/2007, August 8](#) – (approves the accessibility regime for buildings and establishments that receive people, public paths and residential buildings).

[Order n.º 8584/2017, 29 of September](#) on Regulations for the Award of Scholarships for attendance in Higher Education for Students with Disabilities equal to or greater than 60% (PT version only).

[Scholarships for students in HE with disabilities](#) (PT version only) should also be mentioned.

The initiative “Inclusion for Knowledge”, promotes access to higher education and knowledge for citizens with special needs, considering that, in this way, the conditions are created for the exercise of the rights conferred on any member of a democratic and inclusive society. In this sense, the regulation for the Attribution of Scholarships for Attendance in Higher Education for Students with Disabilities equal to or greater than 60% was approved, in accordance with which eligible students may request the granting of a scholarship corresponding to the value of the bribe actually paid.

Additional information available at:

<https://www.dges.gov.pt/pt/pagina/bolsas-de-estudo-para-frequencia-de-estudantes-com-incapacidade?plid=373>

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

[Law on Inclusive Education](#) (in its current version), abandons categorisation systems for learners, including the ‘categories associated to special educational needs’. As such, it removes segregation and discrimination based on diagnosis or clinical labels, and special legislation frameworks for learners with special needs from the educational system. Moreover, it abandons the restricted concept of “support measures for learners with special educational needs”. It takes a broader view, implying a whole school approach, which considers multiple dimensions and the interactions between them.

Over the past 25 years, Portuguese education system has witnessed historic improvements in both access and attainment. Nearly all school-aged children are enrolled in compulsory education since the 2009 extension of compulsory schooling to 18 years of age.

The right to education of all children, including those with disabilities, is recognised by all the Portuguese society.

Students from poor households:

☒ Financial incentives and fellowships for school enrolment are provided

☐ Teachers are trained to combat stigmatisation³⁵

☒ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education

☒ Curricula are rid of all stereotypes³⁶ and bias

☒ Positive or affirmative action measures are provided

☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

³⁵ Supra note 15.

³⁶ Supra note 16.

Please check above the information about the TEIP4 Programme (question 1.1).

All families with insufficient economic resources may receive allowances for school transportation, food, textbooks and school supplies. School social support is also available for upper secondary school students.

Through various laws that approved State Budgets, free textbooks for students have been gradually introduced since 2016. As of the 2019/2020 school year - through Law 71/2018, of 31 December - the system of free textbooks has been extended to all students attending compulsory schooling, in the public network of the Ministry of Education, Science and Innovation (MECI), thus complying with the provisions of article 29 of Law 47/2006, of 28 August, in its current wording. The aforementioned Law also states that the government member responsible for education will define the procedures and conditions for making textbooks available free of charge, their use, return and reuse.

As a result, Order no. 921/2019 of 24 January approved the 'Manual to Support the Reuse of School Textbooks', which contains a set of methodologies, good practices and principles to be developed and adapted by educational communities in this process.

As mentioned, the [Decree-Law no. 54/2018](#) and [Decree-Law no. 55/2018, July 6](#), are the guarantee of an inclusive school that promotes equality and non-discrimination, whose diversity, flexibility, innovation and personalisation respond to the heterogeneity of students, by eliminating obstacles and stereotypes in access to the curriculum and learning.

This process is based on a multi-level approach that integrates universal, selective and additional measures to support learning and inclusion.

A key element in Portugal's success has been the provision of digital infrastructure, including laptops and mobile connectivity, to both students and teachers. This initiative has bridged the digital divide and guaranteed equal access to digital learning resources, promoting widespread participation in digital education.

Regarding **Higher Education** the following legal and policy measures can be mentioned:

[Order nº7523/2024](#) - Amends the Regulations for Awarding Scholarships to Higher Education Students - July 2024 – (PT version only);

[Law n.º 68/2017, August 9](#) (PT version only) - Establishes the phased payment of tuition fees owed by higher education students and a special payment regime for beneficiaries of social action scholarships, making the third amendment to Law no. 37/2003, of 22 August (Bases for the financing of higher education). (PT version only)

[Decree-Law.º 134/2023, December 28](#) (PT version only) - Approves the qualification enhancement wage premium as a financial incentive to practise the profession in Portugal;

[Order n.º 7646/2023, de 24 de julho](#) (PT version only) - Approves the Regulations of the +Superior Programme;

Strengthening the National Plan for Accommodation in Higher Education (Portugal: National Plan for Housing in Higher Education (PNAES))

The National Plan was launched a few years ago and entered a new phase in 2022. It aims, until 2026, at building new residences and rehabilitating old buildings in different places in Portugal, especially where

there is more student housing demand than supply. The goal is also to offer more and better conditions for students and their families in accessing housing solutions.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (*several items may be ticked*):

- | | |
|---|---|
| ☐ Prior to pre-primary education, ECCE services are free | ☒ ECCE services respect a child’s need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play. |
| ☐ Prior to pre-primary education, ECCE services are affordable | |
| ☐ ECCE services are accessible on a non-discriminatory basis | |

- Please elaborate further on the measures taken:

As mentioned, the [Pedagogical Guidelines for Kindergartens](#) (0-3 years old) and the [Curriculum Guidelines for Pre-School Education](#) (3-6 years old), guide the construction and management of the curriculum, and share the same foundations and principles.

Moreover, they adopt an inclusive perspective in which they affirm the demand for an educational response to all children, regardless of their nationality, mother tongue, culture, religion, ethnicity, and sexual orientation of family member, their cognitive, motor and sensory differences.

Moreover, and as also mentioned, the [National System of Early Intervention](#) integrates an organised set of services under the responsibility of the Ministries of Education, Health, Labour and Social Security aimed at children ages between 0 and 6 years old and their families, with the mission to guarantee an early childhood intervention. The intervention shall be carried out in the usual environments of children

³⁷ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.
³⁸ Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

(home, day-care, kindergarten, others), during daily routines and activities in order to promote the child's participation in learning experiences, starting from the goals defined by the family.

Website: <https://snipi.gov.pt/#no-back>.

- Is compulsory and free of charge pre-primary education available?

☐ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

☒ Pre-primary education is **not** compulsory.

☒ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

Day-care centres in the social and solidarity sector, Social Security childminders and active day-care centres in the for-profit network are free of charge for families. The implementation of the Happy Daycare Programme and the Childcare Guarantee ensure access to free daycare and other measures to reduce child poverty.

In pre-school education (3-6 years old), the teaching component (five hours a day for which the kindergarten teacher is responsible) is free in both the public and private non-profit network. This component is fully funded by the state, except for-profit kindergartens. The family support component (extended hours and lunch) is subsidised by families according to their *per capita* income.

☐ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

☒ Limited access

☐ Issues of equity and inclusion

☐ Poor quality programmes

☐ Other:

☐ Poor learning outcomes

☐ Low number of professionally trained educators

☐ Lack of support to families

- Please elaborate. Brief quantitative information may be added.

Access to kindergarten and pre-school education is still not widespread. Therefore, under [Order no. 8251/2024 of 14 June](#), a working group was set up to study and present proposals for action with a view to generalising access to early childhood education, as well as the quality of care in crèches and

kindergartens. This working group includes representatives from various entities within the Ministry of Education, Science and Innovation (MECI) and the Ministry of Labour, Solidarity and Social Security (MTSSS).

The Law establishes the gratuity of pre-primary education, which has a duration of two years. However, pre-primary education is not compulsory ([Law No. 85/2009](#), amended by the [Law No. 65/2015](#)):

Article 4.

- 1) Preschool education is universal for all children from the year they reach 4 years of age;
- 2) The universality implies, for the State, the obligation to guarantee the existence of a pre-school education network that allows the enrollment of all the children covered by it and to ensure that this attendance takes place in a regime of gratuity of the educational component.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

Law No. 85/2009 provides for the gratuity of compulsory education, which corresponds to twelve years (from 6 to 18 years old).

Act Law on Education (Law No. 46/86) as amended by the [Law No. 49/05](#):

Article 6

- 1) Basic education is universal, compulsory and free and lasts for nine years (primary and lower secondary education).
- 2) Children who reach the age of 6 by 15 September enter primary school.

Article 8

- 1) Basic education comprises three sequential cycles, being the 1st of four years, the 2nd of two years and the 3rd of three years.

[Law No. 85/2009](#):

Article 1

- 1) This law establishes the regime of compulsory education for children and young people of school age.

Article 2

- 1) For the purposes of paragraph 1 of the preceding article, children and adolescents are considered to be of school age when their ages are between 6 and 18 years old.

Article 3.

- 1) In the context of compulsory education, education is universal and free;
- 2) The gratuity includes tuition fees and other fees related to enrollment, school attendance and certification of achievement, and the students have support in the context of school social action, in accordance with applicable law;
- 3) The students covered by this law, in a situation of need, are beneficiaries of the granting of financial support, in the modality of scholarships, in terms and conditions to be regulated by decree-law.

- Is primary education compulsory and free of charge?

- ☒ Primary education is compulsory
- ☐ Primary education is **not** compulsory.
- ☒ Primary education is free of charge.
- ☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

As mentioned, Law No. 85/2009 provides for the gratuity of compulsory education, comprising twelve years (from 6 to 18 years old).

Act Law on Education (Law No. 46/86) as amended by the [Law No. 49/05](#):

Article 6

- 1) Basic education is universal, compulsory and free and lasts for nine years (primary and lower secondary education).
- 2) Children who reach the age of 6 by 15 September enter primary school.

Article 8

Basic education comprises three sequential cycles, being the 1st of four years, the 2nd of two years and the 3rd of three years.

[Law No. 85/2009](#)

Article 1

- 1) This law establishes the regime of compulsory education for children and young people of school age.

Article 2

- 1) For the purposes of paragraph 1 of the preceding article, children and adolescents are considered to be of school age when their ages are between 6 and 18 years old.

Article 3.

- 1) In the context of compulsory education, education is universal and free.
- 2) The gratuity includes tuition fees and other fees related to enrollment, school attendance and certification of achievement, and the students have support in the context of school social action, in accordance with applicable law.

- 3) The students covered by this law, in a situation of need, are beneficiaries of the granting of financial support, in the modality of scholarships, in terms and conditions to be regulated by decree-law.

- What challenges were encountered in realizing primary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes in: |
| ☐ Issues of equity and inclusion | Foundation literacy |
| ☐ High dropout rates | Numeracy |
| ☐ Poor quality programmes | Social and emotional learning |
| ☐ Other: | Others |
| | ☐ Disparity in learning outcomes |
| | ☐ Low number of professionally trained teachers |

- Please elaborate. Brief quantitative information may be added.

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

Law No. 85/2009 provides for the gratuity of compulsory education, which corresponds to twelve years.

Lower secondary education comprises a three-year cycle. As a rule, students begin this cycle at the age of 12 years old.

[Act Law on Education \(Law No. 46/86\) as amended by the Law No. 49/05:](#)

Article 6.

- 1) Basic education is universal, compulsory and free and lasts for nine years.
- 2) Children who reach the age of 6 by 15 September enter primary school.

Article 8.

- 1) Basic education comprises three sequential cycles, being the 1st of four years, the 2nd of two years and the 3rd of three years (lower secondary education – from 12 to 14 years old).

[Law No. 85/2009](#)

Article 1

- 1) This law establishes the regime of compulsory education for children and young people of school age.

Article 2

- 1) For the purposes of paragraph 1 of the preceding article, children and adolescents are considered to be of school age when their ages are between 6 and 18 years old.

Article 3.

- 1) In the context of compulsory education, education is universal and free.
- 2) The gratuity includes tuition fees and other fees related to enrollment, school attendance and certification of achievement, and the students have support in the context of school social action, in accordance with applicable law.
- 3) The students covered by this law, in a situation of need, are beneficiaries of the granting of financial support, in the modality of scholarships, in terms and conditions to be regulated by decree-law.

- Please provide the age of enrolment and duration of upper secondary education:

Secondary education comprises a three-year cycle. As a rule, students begin this cycle at the age of 15, ending at 18 years old).

- Is lower and upper secondary education compulsory and free of charge?

- ☒ Lower secondary education is compulsory.
- ☐ Lower secondary education is **not** compulsory.
- ☒ Lower secondary education is free of charge.
- ☐ Lower secondary education is **not** free of charge.
- ☒ Upper secondary education is compulsory.
- ☐ Upper secondary education is **not** compulsory.
- ☒ Upper secondary education is free of charge
- ☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Law No. 85/2009 provides for the gratuity of compulsory education, which corresponds to twelve years.

[Act Law on Education \(Law No. 46/86\) as amended by the Law No. 49/05:](#)

Article 6.

- 1) Basic education is universal, compulsory and free and lasts for nine years.

- 2) Children who reach the age of 6 by 15 September enter primary school.

Article 8.

Basic education comprises three sequential cycles, being the 1st of four years, the 2nd of two years and the 3rd of three years.

Article 10.

- 2) The courses of secondary education have the duration of three years.

[Law No. 85/2009](#)

Article 1

- 1) This law establishes the regime of compulsory education for children and young people of school age.

Article 2

- 1) For the purposes of paragraph 1 of the preceding article, children and adolescents are considered to be of school age when their ages are between 6 and 18 years old.

Article 3.

- 1) In the context of compulsory education, education is universal and free.
- 2) The gratuity includes tuition fees and other fees related to enrollment, school attendance and certification of achievement, and the students have support in the context of school social action, in accordance with applicable law.
- 3) The students covered by this law, in a situation of need, are beneficiaries of the granting of financial support, in the modality of scholarships, in terms and conditions to be regulated by decree-law.

Moreover, Declarations of Rectification no. 51/2019, of 7 October and of Rectification to Law no. 96/2019, of 4 September, establish that school textbooks are provided to all students free of charge within compulsory education.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes o No ☒

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

According to the Portuguese Labour Code, as a rule, the minimum age for a labour contract

is 16. As a rule, only young people who have reached the age of 16, have completed compulsory schooling or are enrolled and attending secondary school, and who have the physical and mental abilities appropriate to the work they intend to take on, can work.

- What challenges were encountered in realizing secondary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low readiness of primary graduates |
| ☐ High dropout rates | ☐ Low number of professionally trained teachers |
| ☐ Poor quality programmes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

- ☐ Higher education is free of charge
- ☒ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ☒ Higher education is accessible through financial incentives and scholarships
- ☒ Higher education is accessible through positive or affirmative action measures
- ☒ Higher education is accessible through credit transfer system between states

³⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁴⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

- ☒ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).

☐ Other:

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

- [HE in Portugal 2021/2023](#)

(PT version only)

A report with Portuguese Higher Education data is a summary publication that presents the most relevant information about the higher education system in Portugal, focusing on its organizational structure, the network, the access for students and staff.

To access the report please click on the following link :

https://wwwcdn.dges.gov.pt/sites/default/files/o_ensino_superior_em_portugal_2021-2023_versao_final_10_07_2024.pdf

- [Revision of the system of access HE 2022/2023](#) (PT version only)

From this publication several conclusions were taken resulting from this review process that confirm the centrality of the access to higher education has on the lives of thousands of young people who every year begin studies in Portuguese higher education system.

The process of accessing Portuguese higher education, whether by young people who have just completed secondary education, whether by older, national or international institutions, through the various entry routes available, will mark indelibly the personal and professional path of these students. With a significant impact in capturing and developing human potential, it promotes a more prosperous, less unequal and more inclusive society.

- Programmes [Impulso Jovens STEAM](#), [Impulso Adultos](#) and [Impulso MAIS Digital](#) (PT version only)

Both Impulso Jovens STEAM and Impulso Adultos programs aim to support initiatives to be developed by higher education institutions, in partnership or consortium with companies, public and/or private employers and including local, regional and national authorities and public entities:

Impulso Jovens STEAM aims to promote and support initiatives aimed exclusively at increasing higher education among young people in the areas of science, technology, engineering, arts and mathematics, through the offering of degrees and other initial higher education training.

Impulso Adultos aims to support the conversion and updating of skills of active adults, through short-term training in higher education, at initial and postgraduate levels, in all areas of knowledge, as well as training throughout life.

The Impulso Mais Digital Program aims:

- i) to encourage the modernization of the higher education network, with an emphasis on key areas for the country's resilience and increasing skills in society and companies, particularly in digital and technological areas, through a greater number of training offers from Higher Education Institutions and a greater number of young people and adults trained and requalified, reinforcing and accelerating the implementation of the “Impulso Jovens STEAM e Adultos” programs;
 - ii) to modernize pedagogical practices in higher education, with a view to promoting academic success, reducing dropout rates and student well-being, as well as technological updating and the modernization of training conditions, the promotion of sustainable agriculture, improving health systems, the green transition and environmental sustainability.
- [Order nº7523/2024](#) - Amends the Regulations for Awarding Scholarships to Higher Education Students - July 2024 (PT version only);
- [Law n.º 68/2017, August 9](#) (PT version only)- Establishes the phased payment of tuition fees owed by higher education students and a special payment regime for beneficiaries of social action scholarships, making the third amendment to Law no. 37/2003, of 22 August (Bases for the financing of higher education);
- [Decree-Law.º 134/2023, December 28](#) (PT version only) - Approves the qualification enhancement wage premium as a financial incentive to practise the profession in Portugal;
- [Order n.º 7646/2023, July 24](#) (PT version only) - Approves the Regulations of the +Superior Programme;
- [Order n.º 8584/2017, 29 of September](#) (PT version only) on Regulations for the Award of Scholarships for attendance in Higher Education for Students with Disabilities equal to or greater than 60%;
- [Scholarships for students in HE with disabilities](#) (PT version only) should also be mentioned. The initiative “Inclusion for Knowledge”, promotes access to higher education and knowledge for citizens with special needs, considering that, in this way, the conditions are created for the exercise of the rights conferred on any member of a democratic and inclusive society. In this sense, the regulation for the Attribution of Scholarships for Attendance in Higher Education for Students with Disabilities equal to or greater than 60% was approved, in accordance with which eligible students may request the granting of a scholarship corresponding to the value of the bribe actually paid.

Additional information available at:

<https://www.dges.gov.pt/pt/pagina/bolsas-de-estudo-para-frequencia-de-estudantes-com-incapacidade?plid=373>

- Strengthening the National Plan for Accommodation in Higher Education (Portugal: National Plan for Housing in Higher Education (PNAES))

The National Plan was launched a few years ago and entered a new phase in 2022. It aims, until 2026, at building new residences and rehabilitating old buildings in different places in Portugal, especially where there is more student housing demand than supply. The goal is also to offer more and better conditions for students and their families in accessing housing solutions.

- What challenges were encountered in realizing higher education?

- | | |
|---|--|
| ☐ Limited access | ☐ Low number of professionally trained professors |
| ☐ Issues of equity and inclusion | ☒ Insufficient mechanisms to ensure smooth transition from secondary to tertiary |
| ☐ Poor quality programmes | |
| ☐ Poor learning outcomes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (*several items may be ticked*):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of professional training including reskilling and upskilling programmes
- ☒ Recognition, validation and certification of non-formal and informal learning
- ☒ Provision of free of charge career guidance and counselling
- ☐ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

- Please elaborate further on the measures taken:

The Digital Academy for Parents (ADP) Program is an initiative by E-Redes, in partnership with the Directorate-General for Education (DGE), which provides parents and guardians of students in Basic and Secondary Education with the opportunity to attend training sessions promoting digital skills. Schools recognize this initiative as an effective way to address the needs of their educational communities by involving young students as volunteers and creating communication channels that bring families closer to the school. To support schools, kits were created containing materials for the three available training courses: (i) Basic Digital Skills, (ii) Digital Safety and (iii) Citizenship, and Digital Consumer. In the last three editions, 436 Organizational Units (UO), 4587 (four thousand five hundred and eighty-five) volunteers, and 6002 trainees (six thousand and two) parents/guardians participated. The 2023/24 edition is currently underway.

The SeguraNet Challenges initiative, developed by the SeguraNet Awareness Center, aims to alert, raise awareness, and engage educational communities—students, teachers, and parents/guardians—about the importance of Digital Citizenship Education.

The SeguraNet Challenges are organized around schools, involving teams of teachers with their students and teams of parents/guardians, who are tasked with responding to challenges presented throughout each edition on various Digital Citizenship topics, including issues such as bullying and cyberbullying.

In its 18 editions, the SeguraNet Challenges involved an average of 80,000 participants per edition.

Regarding **Vocational education and training** and in the scope of the update of the National Catalogue of Qualifications (NCQ), new training pathways were introduced, namely:

- the Programme “Jovem + Digital”, created by Ordinance no. 250-A/2020, of 23 October, aims at reinforcing the development of skills in the digital area;
- the Programme “Digital Skills Certificate”, created in 2021 (Ordinance No. 179/2021, of 27 August), is a short and medium duration training programme to raise the digital skills of the Portuguese population;
- the “Green Skills & Jobs” Programme (Order no. 21/2023, of 6 January) integrates 4 short and medium-term pathways that respond to specific skills in the area of the environment and energy.

Moreover, and in the area of **Higher Education**, the following can be mentioned:

- [Revision of the system of access HE 2022/2023](#) (PT version only)
From this publication several conclusions were taken resulting from this review process that confirm the centrality of the access to higher education has on the lives of thousands of young people who every year begin studies in Portuguese higher education system.

The process of accessing Portuguese higher education, whether by young people who have just completed secondary education, whether by older, national or international institutions, through the various entry routes available, will mark indelibly the personal and professional path of these students.

With a significant impact in capturing and developing human potential, it promotes a more prosperous, less unequal and more inclusive society.

- Programmes [Impulso Jovens STEAM, Impulso Adultos and Impulso MAIS Digital](#) (PT version only)

Both Impulso Jovens STEAM and Impulso Adultos programs aim to support initiatives to be developed by higher education institutions, in partnership or consortium with companies, public and/or private employers and including local, regional and national authorities and public entities:

Impulso Jovens STEAM aims to promote and support initiatives aimed exclusively at increasing higher education among young people in the areas of science, technology, engineering, arts and mathematics, through the offering of degrees and other initial higher education training.

Impulso Adultos aims to support the conversion and updating of skills of active adults, through short-term training in higher education, at initial and postgraduate levels, in all areas of knowledge, as well as training throughout life.

The Impulso Mais Digital Program aims:

- to encourage the modernization of the higher education network, with an emphasis on key areas for the country's resilience and increasing skills in society and companies, particularly in digital and technological areas, through a greater number of training offers from Higher Education Institutions and a greater number of young people and adults trained and requalified, reinforcing and accelerating the implementation of the "Impulso Jovens STEAM e Adultos" programs;
- to modernize pedagogical practices in higher education, with a view to promoting academic success, reducing dropout rates and student well-being, as well as technological updating and the modernization of training conditions, the promotion of sustainable agriculture, improving health systems, the green transition and environmental sustainability.

- Recognition, Validation and Certification of Skills

The recognition, validation and certification of skills (RVCC) consists of the process through which the adult demonstrates skills acquired and developed throughout life through formal, non-formal and informal means, which are subject to validation and certification for the purposes of obtaining a qualification (Ordinance no. 61/2022, of January 31st - consolidated version).

For more information please consult: <https://www.anqep.gov.pt/np4/RVCC.html> (PT version only)

- What challenges were encountered in realizing adult learning and education?

- | | |
|---|---|
| ☐ Limited access | ☒ Limited funding |
| ☐ Issues of equity and inclusion | ☐ Poor learning outcomes |
| ☐ Poor quality programmes | ☐ Low number of professionally trained educators |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ☐ State monitoring and inspections
- ☐ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☐ Infrastructure
- ☐ Curriculum
- ☐ Student-teacher ratio
- ☐ School fees (if relevant)
- ☒ Other

Promotion of development and well-being

- Schools offer a Psychology and Counseling Service (Decree-Law No. 190/91 of May 17, <https://diariodarepublica.pt/dr/detalhe/decreto-lei/190-1991-639489>) to support students individually and in groups. This service promotes academic success, socio-emotional development, and well-being. It also improves interpersonal relationships within the school community.
- The "Framework for the Intervention of Psychologists in School Settings," (https://www.dge.mec.pt/sites/default/files/EInclusiva/referencial_para_a_intervencao_dos_psicologos_em_contexto_escolar.pdf) published in 2024 by the Directorate-General for Education, guides the actions of psychologists in schools, reaffirming a strong commitment to high quality and equity in education.

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

[Law no. 51/2012, September 5 – Student Statute and School Ethics](#) (Lei n.º 51/2012, de 5 de setembro – Estatuto do Aluno e Ética Escolar - states the students’ rights and duties (in basic and secondary education levels).

Within the scope of this Law, we highlight Article 7 on **Students’ Rights**, in which it is stated that students have the right to the following:

- i) *be treated with respect and correction by any member of the educational community and they cannot, in any case, be discriminated against on grounds of ethnic origin, health, gender, sexual orientation, age, gender identity, economic situation, cultural or social condition or political, ideological, philosophical or religious beliefs;*
- ii) *benefit from other specific supports that match their school needs or their learning through psychology and guidance services or any other specialized educational support services;*
- iii) *have safeguarded their safety at school and respected their physical and moral integrity, namely benefiting from the special protection enshrined in criminal law for members of the school community;*
- iv) *be assisted, quickly and appropriately, in case of accident or sudden illness, occurred or manifested during the school activities. Students have duties for the same items set out in article 7 (as expressed in article 10 of this Law).*

“School Without Bullying | School Without Violence” Plan aims to equip educational communities with a range of tools to help prevent and combat bullying and cyberbullying, especially among the younger population.

This initiative implemented in 2019 as a supportive measure and designed to encourage the use of various prevention and intervention approaches to this phenomenon aims to promote, recognize and share best practices. The following **“School Without Bullying | School Without Violence” seals** were awarded:

- In its first edition, 52 School Clusters/Non-Clustered Schools (AE/Ena);
- the second edition certified 208 AE/Ena
- the third edition certified 404 AE/Ena
- the forth and most recent edition, for the 2023/24 school year, certified 417 AE/Ena.

It is important to continue certifying schools that, by staying vigilant, say “no” to violence and develop a plan to prevent and combat all forms of violence, particularly bullying and cyberbullying. Creating a well-being environment within schools is the responsibility of everyone who inhabits each school!

- What challenges were encountered in realizing quality education?

- | | |
|---|---|
| ☐ Non-supportive or inadequate learning environments | ☐ Low quality educational infrastructure and materials |
| ☒ Violence in schools | ☐ Inadequate parental support to education |
| ☐ Cost of education | ☐ Long distances to schools |
| ☐ Conflicts or crises | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☐ Teacher training is provided without discrimination.
- ☐ Teachers’ average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ☐ Initial training and continuous professional development are provided.
- ☐ Minimum standards and qualifications required for the teaching profession.
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession.
- ☐ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ☐ Establishment of performance monitoring systems.
- ☐ Measures taken to increase women in leadership positions in education.
- ☐ Other:

- Please elaborate on each of the measures taken:

- What challenges were encountered in the education personnel?

- | | |
|--|---|
| ☐ Shortages of teaching staff | ☐ Low quality educational infrastructure and materials |
| ☐ Lack of qualified, trained and motivated teaching staff | ☐ High student – teacher ratio |
| ☐ Lack of training centres | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

- ☒ Curriculum includes human rights education.
- ☒ Educational and/or extracurricular activities are organized on human rights education.
- ☒ Other:

It is important to highlight a range of support services that can make a significant difference when issues arise related to the safety of educational communities, especially when the well-being of children and young people is at risk. Among these services are: the School Safety Program, which involves the presence of police forces in schools; the Safe Internet Line; and the SOS Children Line, among others.

- Please elaborate on each of the measures taken:

As mentioned (question 1.2), Human Rights is one of the six domains (topics) of the curricular component 'Citizenship and Development' that is compulsory for all the school education levels and cycles. ,

As a domain of Education for Citizenship - Citizenship and Development, Human Rights aim to promote a culture of human rights and fundamental freedoms, in all aspects of people's lives.

This domain contributes to children and young people acquiring the knowledge, skills, values and attitudes that allow them to understand, exercise and defend Human Rights, assuming respect for these as a responsibility of all people, in favour of a world of peace, justice, freedom and democracy.

Aiming at promoting human rights education several measures and activities – such as projects and programmes, awards, teachers and educational resources – are developed in the context of citizenship education, by the Ministry of Education, in collaboration with different national and international entities (including public and private agencies, NGO's and other civil society organisations). The following are just 2 examples of measures and activities:

"Students' Voice" is a set of initiatives developed with and by schools that promote time and space for students to exercise their full, active and creative citizenship, participating in the dynamics of the school. By giving "Voice to the Students", the aim is for them to critically analyse and question reality; evaluate and select information; formulate hypotheses; take informed decisions in their daily lives, through the free expression of ideas and debate of opinions; actively participate in the school's educational project and in other moments of the school's daily life.

[“Democracy, what do I need you for?”](#) - a set of debates in schools (upper secondary education) and with streaming broadcast on a radio (TSF.pt). The initiative started in 2022, in partnership between the Ministry of Education (through the Directorate-General for Education (DGE) and TSF radio. This project is developed within Citizenship Education – Citizenship and Development curricular component (Human Rights, Institutions and Democratic Participation and Media topics) and Essential Learning (History and Philosophy subjects).

The Safer Internet Center, of which the Directorate-General for Education (DGE) is an integral part through the SeguraNet Awareness Center, is part of the European network of Safer Internet Centers, the Insafe network, and the international network of reporting hotlines, the Inhope network. The European Strategy for a Better Internet for Kids aims to ensure that children are protected, respected and empowered in the digital world, and it underpins the work developed by the Insafe network, including the Portuguese Safer Internet Center and the SeguraNet Awareness Center.

Notable among the services provided by this Center, managed by the Portuguese Association for Victim Support (APAV), and promoted to school administrations and educational communities, are:

- a) The Safer Internet Helpline, which offers anonymous and confidential telephone or online support on issues related to the use of online platforms and technologies, including responses to bullying, cyberbullying situations and all kind of digital violence. It has a system that allows serious incidents to be reported to the competent authorities when there are indications that a child may be in danger;
- b) The illegal online content reporting service (such as the promotion of violence, the promotion of racism, and content related to child abuse and exploitation), which provides a range of tools to anonymously report potentially illegal content.

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

- ☒ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. *Please specify:*

Portugal has legal provisions that prohibit discrimination on various grounds, and these provisions apply to both state and non-state educational institutions.

Law no. 93/2017 is a key piece of legislation that establishes the legal framework for preventing, prohibiting, and combating discrimination based on racial and ethnic origin, skin colour, nationality, descent, and territory of origin. This law explicitly includes education within its scope, ensuring that non-state educational institutions are also required to comply with anti-discrimination measures.

Additionally, the Portuguese Constitution enshrines the principle of equality and non-discrimination, which applies to all citizens and institutions, including educational ones². This foundational legal framework ensures that all students, regardless of the type of educational institution they attend, are protected from discrimination.

⁴² Private, faith-based, NGOs, community actors.

⁴³ See: Article/Paragraph 1(1).

- ☒ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). [Please specify:](#)

Portugal has policies in place to ensure that the development of non-state education does not lead to discrimination and that non-state educational institutions provide a valuable alternative to state education.

The 1986 Basic Law of the Educational System, as amended in 2009, governs Portugal's education system and allows for the establishment and operation of private and cooperative schools. This law ensures that non-state educational institutions adhere to regulations that promote equitable access, quality assurance, and accountability.

Additionally, the Statute of Private and Cooperative Education (Decree-Law No. 152/2013) outlines the framework for private and cooperative educational institutions, ensuring they operate under conditions that prevent discrimination and promote inclusivity. These institutions are required to obtain state consent for their academic programs, ensuring they meet national educational standards.

Overall, these policies aim to create a balanced educational landscape where non-state actors can offer relevant and high-quality alternatives without supplanting public education.

- ☒ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

The Portuguese Constitution guarantees the freedom of education, which includes the right of parents to educate their children according to their own religious and moral convictions. This is further supported by the Civil Code, which outlines the duties and rights of parents in relation to the upbringing and education of their children.

Additionally, the Basic Law of the Educational System ensures that parents have the right to choose the type of education they want for their children, including religious and moral education. This law provides a framework that respects the diversity of educational philosophies and the rights of families to impart their values and beliefs to their children.

- ☒ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

- ☒ Registration
- ☒ State monitoring and inspections
- ☒ Qualifications of teachers
- ☒ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☒ Infrastructure
- ☒ Curriculum
- ☒ Student-teacher ratio
- ☒ School fees

☒ School closures

☐ Other

The Basic Law of the Educational System (Law No. 46/86, as amended) provides the foundational legal framework for education in Portugal, including provisions for private and cooperative schools. This law ensures that non-state educational institutions adhere to national educational standards and contribute to the overall educational goals of the country.

Additionally, the Statute of Private and Cooperative Education (Decree-Law No. 152/2013) outlines specific requirements for the operation of private and cooperative schools². This includes conditions for obtaining state consent, ensuring quality assurance, and maintaining accountability. The statute aims to ensure that these institutions provide high-quality education and operate in a manner that is consistent with national educational policies.

Furthermore, the Decree-Law No. 55/2018 establishes the curriculum and assessment guidelines for primary and secondary education, which apply to both state and non-state educational institutions¹. This ensures that all schools, regardless of their management, meet the same educational standards and provide a consistent level of education to all students.

These legal provisions collectively ensure that non-state educational institutions in Portugal operate under conditions that promote quality education and prevent discrimination.

- Please elaborate:

- What challenges were encountered in non-state education provision?

☐ Low quality educational infrastructure and materials

☐ Issues in terms of equity and inclusion

☐ Low number of professionally trained teachers

☐ Weak government regulatory and monitoring capacity

☐ High student – teacher ratio

☐ Other:

- Please elaborate. Brief quantitative information may be added.

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

⁴⁴ Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

☒ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

Contextualization

The Council of Ministers Resolution No. 30/2020, of April 21, approved the Digital Transition Plan (which includes the School Digitization Program) that established a new framework for digital transformation by approving an action plan for a Portugal more digital. This plan includes both structural initiatives and measures with more immediate impact. Among these initiatives is a strong commitment to implementing a Digital Capacity Building for Teachers (CDD) plan, ensuring the acquisition of the necessary skills for teaching in this new digital context, and involving teachers, National Qualifications System trainers, and information technology technicians in each school. The CDD is crucial for the development of innovative models associated with teaching and learning processes and aligns with other initiatives promoting academic success implemented by the Ministry of Education, positioning itself as the driving force behind school transformation.

Digital Capacity Building for Teachers:

99.760 (ninety-nine thousand seven hundred sixty) teachers in the public education network received training in basic or more advanced digital skills.

Note: Data obtained in real-time from the CDE website on 5 February 2024.

Digital Capacity Building for Teachers:

Regarding the CDD, the Directorate-General for Education (DGE), in collaboration with the School Association Training Centers (CFAE), provided conditions for teachers across various cycles of basic and secondary education in public schools in mainland Portugal and Portuguese Schools abroad to access a questionnaire based on the Check-In self-reflection tool developed by the Joint Research Centre (JRC).

This tool, validated in several European Union countries, including Portugal, is supported by the DigCompEdu digital competence framework, made available in our country by the University of Aveiro.

99.760 (ninety-nine thousand seven hundred sixty) teachers participated in this self-reflection process out of an approximate 111.891 (one hundred eleven thousand eight hundred ninety-one). Regarding the results obtained through Check-In, 26% of respondents were positioned at Level 1, 65% at Level 2, and 9% at Level 3.

To reach the universe of teachers in the educational system of mainland Portugal, it was necessary to train trainers with a predefined profile identified by the CFAE. Trainer training is a crucial action in the Digital Capacity Building for Teachers Plan. Only trainers with high digital proficiency and trained for the effective pedagogical integration of digital technologies in teaching and learning meet the necessary requirements to promote the development of teachers' digital skills, as indicated in the different areas of the DigCompEdu framework.

The training frameworks developed were theoretically supported by DigCompEdu and DigCompOrg and submitted to the Scientific-Pedagogical Council for Continuous Training (CCPFC) for accreditation and received the necessary approval.

To train trainers, the DGE organized three editions of the "Trainer Training for Digital Capacity Building of Teachers" course, as well as three Short-Term Training Actions, with 926 (nine hundred and twenty-six) trainers currently certified. The accreditation processes for training workshops aimed at teacher capacity building were designed in three levels to target training for homogeneous groups of trainees, positioned at the same global levels of digital competence (e.g., beginner, intermediate, advanced).

Similarly, the "Digital Capacity Building for Pre-School Educators" aims to equip early childhood educators with digital skills to meet the challenges of the 21st century and integrate digital environments into their pedagogical practice, in line with the principles outlined in the Curriculum Guidelines for Pre-School Education (2016).

In addition to the training frameworks and the training provided by the DGE to all trainers, with respect to their adaptation to different curricular contexts, there was an intention to produce and provide new reference resources for the preparation and delivery of training workshops. In this regard, Modules of Teacher Training by curricular area were developed, created by reference trainers in various fields, with the collaboration of the TIC Competence Centres.

The process of creating the Teacher Training Modules involved hiring reference trainers with scientific expertise in each of the identified areas. The process involved the TIC CC to support the module production teams. The identification, selection, and distribution of the CCTIC were carried out according to the disciplinary areas of the requested trainers.

Thus, eight Teacher Training Modules were produced: (i) Module, (ii) Pre-School; (iii) 1st Cycle of Basic Education; (iv) Arts; (v) Languages; (vi) Exact Sciences; (vii) Experimental Sciences; (viii) Social and Human Sciences.

To ensure the sustainability of this entire process, a support community was created: "Community of Teachers in Digital Competencies: Sharing Practices and Knowledge," which aims to encourage reflection and the sharing of practices related to professional development in teachers' digital competencies.

Next Steps:

To sustain the entire CDD process, mechanisms of support and assistance will be created, such as consolidating sharing communities, establishing small networks between School Clusters, and promoting training, notably through the offering of Massive Open Online Courses (MOOCs). With these measures, the aim is to continue supporting teachers so they can develop their digital competencies and effectively integrate technologies into their pedagogical practices.

As part of the Recovery and Resilience Plan (Plano de Recuperação e Resiliência - PRR), whose central objective includes promoting the digitization of education in Portugal, the urgent need to acquire Digital Educational Resources (Recursos Educativos Digitais - RED) to meet the challenges of contemporary education was identified. This initiative, combined with other measures being developed in the context of the Digital School, namely the distribution of portable equipment with an Internet connection for teachers and students, strengthening the quality of connectivity in schools and a comprehensive teacher-training programme underway since 2022, aims to maximize the benefits of the investments made and fill any gaps.

RED's are robust didactic and scientific resources that help students to autonomously construct knowledge and develop skills, both inside and outside the classroom. These resources complement

learning, facilitating the anticipation, recovery, consolidation and deepening of Essential Learning (Aprendizagens Essenciais - AE) in various curricular areas.

This measure will also make it possible to consolidate the structural transformation that began in 2018 with the publication of Decree-Law 55/2018 of 6 July, which gave primary and secondary schools autonomous and flexible management of the curriculum, contributing to educational success and, consequently, to the promotion of equal opportunities.

By 2025, it is planned to ensure access to the RED's already produced and to be produced for the subjects in the curriculum matrix, in line with the targets set by the PRR, the Portugal 2030 Strategy and the European Commission's Digital Education Action Plan for 2021-2027.

Concurrently, a solution is being designed to be implemented through a stand-alone competition called the Learning Ecosystem (Ecosistema de Aprendizagem - EA). This is an innovative and integrated educational platform that will cover all subjects at all levels of education, providing students, teachers and carers with access to digital educational resources (RED's) with the aim of promoting equity and educational success.

By enabling the hosting of RED's and adopting a user-centred approach, this solution will facilitate access to educational resources in digital format, promoting the planning and implementation of teaching, learning and assessment processes.

The EA to be developed will integrate various services, repositories of educational resources and data, covering both basic and advanced functionalities, as well as including cross-cutting elements such as authentication and access control, monitoring and performance guarantees.

In the area of **Higher Education**, the following can be mentioned:

- Programmes [Impulso Jovens STEAM](#), [Impulso Adultos](#) and [Impulso MAIS Digital](#) (PT version only)

Both Impulso Jovens STEAM and Impulso Adultos programs aim to support initiatives to be developed by higher education institutions, in partnership or consortium with companies, public and/or private employers and including local, regional and national authorities and public entities:

Impulso Jovens STEAM aims to promote and support initiatives aimed exclusively at increasing higher education among young people in the areas of science, technology, engineering, arts and mathematics, through the offering of degrees and other initial higher education training.

Impulso Adultos aims to support the conversion and updating of skills of active adults, through short-term training in higher education, at initial and postgraduate levels, in all areas of knowledge, as well as training throughout life.

The Impulso Mais Digital Program aims:

- to encourage the modernization of the higher education network, with an emphasis on key areas for the country's resilience and increasing skills in society and companies, particularly in digital and technological areas, through a greater number of training offers from Higher Education Institutions and a greater number of young people and adults trained and requalified, reinforcing and accelerating the implementation of the "Impulso Jovens STEAM e Adultos" programs;
- to modernize pedagogical practices in higher education, with a view to promoting academic success, reducing dropout rates and student well-being, as well as technological updating and the

modernization of training conditions, the promotion of sustainable agriculture, improving health systems, the green transition and environmental sustainability.

- [Digital Transition Action Plan](#)

Action Plan for the Digital Transition reflects the strategy defined for the digital transition and condenses the Government's vision in this domain, materialized in a structure that includes three main pillars of action, as well as an additional dimension of catalysis that creates the basic conditions for accelerated digitalization of the country.

For more information please consult the following link :

<https://portugaldigital.gov.pt/plano-de-acao-para-a-transicao-digital/> (PT version only)

- [Digital skills observatory](#) (only PT version)

The Digital Skills Observatory is an instrument for monitoring, processing data and analyzing results on the evolution of the population's digital skills, the production of new knowledge in digital areas and the ability to explore the social and economic potential of digital markets. The Digital Skills Observatory was created by Decree-Law No. 156/2019 of October 22, which regulates the creation and maintenance of a system for collecting, recording and analyzing data on science and technology.

- [Program InCode2030](#)

The “National Digital Skills Initiative e.2030, Portugal INCoDe.2030”, is an integrated public policy initiative, launched in 2017, which aims to promote digital skills. Digital skills are essential for the full exercise of citizenship, also acting as a facilitator of employability, by responding to the demands of the growing digitization of the labour market: a more qualified working population gives rise to new forms of work, new professions, and innovative products and, therefore, more robust and competitive economic activities. Digital skills are also of the utmost importance for the development of critical and multifaceted thinking, and for promoting inclusion, autonomy, well-being and social justice.

☒ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

☒ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.

☒ Measures to remove barriers to accessing digital content⁴⁵, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

☐ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

☒ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

☒ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

☐ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

- What challenges were encountered in digital education provision (check all that apply)?

☐ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways

☐ Lack of equity and inclusion in digital learning solutions

☐ Inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks

☐ Other:

☐ Limited access to internet and/or electricity

☐ Limited access to hardware (devices, chargers, etc.)

☐ Difficulty in regulating the use of digital education solutions

☐ Difficulty in sustainably financing digital education solutions at national scale

☐ Lack of digital skills development for meaningful use of digital technology in teaching practice

☐ Disjointed or fragmented solutions that are not centrally systematized or regulated

- Please elaborate. Brief quantitative information may be added.

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

☒ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.

☒ Monitoring results are made public. [Please provide the link:](#)

IGEC publishes reports presenting results of its inspection activities, management tools and other technical and/or informative publications on its website at:
[https://www.igec.mec.pt/content_01.asp?BtreeID=03/02&auxID=.](https://www.igec.mec.pt/content_01.asp?BtreeID=03/02&auxID=)

IGEC also presents a website dedicated to the presentation of school reports of the External Evaluation of Schools in: <https://igec-ae.site/index.php>.

☒ Monitoring processes are participatory, inclusive and regular.

☐ Sector-wide and multisector approach is adopted to education governance.

☐ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.

☐ The decision-making process for the allocation of resources to education is transparent.

☐ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.

☐ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- [Please elaborate on each of the measures taken:](#)

The following Plans have been implemented: "23-24 School+", "+ Classes + Success" and "Learn More Now", in accordance with RCM No. 80-B/2023, of July 18; and with Decree-Law No. 51/2024, of 28 August and with RCM No. 140/2024, of 17 October.

The Resolution of the Council of Ministers No. 80-B/2023, of July 18th, approved Plan 23-24 School+, a learning recovery plan for basic and secondary education, aiming to mitigate the impacts of the COVID-19 pandemic. The plan includes specific actions in areas such as reading, writing, curricular autonomy, educational resources, inclusion and well-being, and support for educational communities. Schools should develop and implement recovery plans based on local diagnostics, with continuous monitoring.

Decree-Law No. 51/2024, of 28 August, established exceptional and temporary measures to reinforce the teaching staff and specialized technicians in public schools of pre-school education and basic and secondary education. The objective is to guarantee the right of students to learning, especially in regions with a shortage of teachers. The measures include the distribution of extraordinary teaching service, the hiring of retired and retired teachers, and the hiring of higher education teachers and PhD researchers. In addition, it provides for the attribution of scholarships for students of teacher training courses and the hiring of specialized technicians to meet temporary needs.

The Resolution of the Council of Ministers No. 140/2024 approved the "Learn More Now" plan to improve learning and integrate migrant students. The plan includes measures to support education from nursery school, prevent school failure and promote self-study. It also focuses on the inclusion of foreign students,

using language mediators and the promotion of Portuguese courses for migrant parents. The plan maintains the actions of the "Plan 2324 School+" to complete the recovery of post-pandemic learning.

In summary, the Learning Recovery Plan (PRA) in Portugal is regulated by the legislation presented above.

In this context, the Inspectorate-General for Education and Science (IGEC) in Portugal also plays an essential role in monitoring and evaluating compliance with obligations related to the right to education, using processes that are participatory, inclusive and regular. The IGEC promotes participation through the involvement of educational communities, consultations with partner bodies and attention to civil society complaints. Its processes are inclusive, ensuring the monitoring of education policies for all, including vulnerable groups, and covering all levels of education. Regularity is ensured by annual or multi-annual activity plans, cyclical inspections and periodic reports, which assess areas such as school dropout, inclusion and educational quality. With results such as the reduction of school dropout, identification of good practices and improvement of educational quality, IGEC contributes to a fairer and more effective educational system, facing challenges with adaptation and innovation mechanisms.

The monitoring processes of the IGEC in Portugal are characterized by being participatory, inclusive and regular. IGEC involves various stakeholders, such as teachers, students, parents and other education professionals, promoting consultations and the active participation of the educational community in its activities. In addition, it ensures inclusion by monitoring policies that ensure access to education for all, covering students with special educational needs and vulnerable groups. Its processes are carried out in a structured and periodic manner, based on annual or multi-annual activity plans that ensure regular inspections and audits, as well as the preparation of recurring reports that analyze the evolution of educational practices and public policies.

- What challenges were encountered in terms of governance?

- | | |
|--|---|
| ☐ Budgetary constraints | ☐ Absence of supportive/ inconsistent/obsolete legal and policy environment |
| ☐ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels | ☐ Lack or weakness of monitoring systems – including the lack of reliable data |
| ☐ Poor dialogue with teachers' trade unions | |
| ☒ ☐ Other: | |

In the various activities of the IGEC – control, monitoring and evaluation, global reports are prepared with information on the schools/entities intervened, with conclusions and recommendations/proposals. It is on these that we focus, considering the identification of challenges and respective proposals for improvement.

In the 2022-2023 global reports on the control activities Management of Teaching Resources and Hourly Credit (https://www.igec.mec.pt/upload/Relatorios/GRDUCH_2022-2023.pdf) and the control activity Organization of the School Year, proposals were made for the tutelage for the deepening and clarification of the regulation, in the order for the organization of the school year (Normative Order No. 10-B/2018, of 6 July) and the dissemination of guidelines to schools on the management of timetable credit provided for in articles 8 to 10 of Normative Order no. 10-B/2018, of 6 July (https://www.igec.mec.pt/upload/Relatorios/OAL_2022-2023.pdf).

In the 2022-2023 global report of the monitoring activity Action of the Multidisciplinary Teams to Support Inclusive Education, the following proposals are proposed for the tutelage: to densify the concept of Learning Support Centre, namely for the purposes of priority enrolment or renewal of enrolment (Article

27(3) and Article 36(2) of Decree-Law No. 54/2018, of 6 July, as amended by Law No. 116/2019, of 13 September).

(See also: https://www.igec.mec.pt/upload/Relatorios/AEMAEI_2022e2023.pdf)

Recommendations for MECI services are also mentioned, such as continuing to promote dynamics of sharing practices between schools, within the scope of inclusive education; promote training in the area of inclusive education for teachers and non-teaching staff, specialised technicians and operational assistants (without prejudice to the competences of the municipalities). These recommendations have as their main purpose the need to continue to invest in collaboration and training to build a broad vision of inclusion in education, focused on the dimensions of diversity and quality education.

In the 2016-2017 and 2022-2023 global report of the monitoring activity Curriculum Management and Quality in Pre-School Education (https://www.igec.mec.pt/upload/Relatorios/GCQEPE_2016-2017_2022-2023.pdf) it mentions as a challenge the guarantee that the facilities of pre-school education establishments of the private solidarity network have the quality and safety required for children and professionals and thus the proposal for the tutelage to design a strategy to provide authorization to operate from the Ministry of Education, Science and Innovation all these establishments.

Also noteworthy is the need to develop training and training actions aimed at professionals working in Pre-School Education; the revision/updating of the cooperation agreements and the annexes, signed with the institutions of the private solidarity network, in order to better safeguard the quality of the educational responses of pre-school education, supported by the guidelines in force, guaranteeing equal opportunities and equity to all children attending the establishments of the national network and publishing/updating the legislation and guidelines, by the competent services of the Ministry of Education, Science and Innovation in order to avoid the adoption of practices in various pre-school education establishments that jeopardize both compliance with the applicable legal framework and the OCEPE.

In the overall report of the External Evaluation of Schools carried out in the period 2021 and 2022 (https://www.igec.mec.pt/upload/Relatorios/AEE_2021-2022.pdf), regarding 72 schools evaluated, the level of evaluation Good was the most frequent in three of the four domains - Self-evaluation, Provision of educational service and Results. More than half of the schools scored Very Good in the Leadership and Management domain. The Self-Assessment domain recorded the lowest scores.

A SWOT analysis, namely of strengths and areas for improvement, allow us to conclude that:

- a) regarding Self-Assessment, although some schools have mature and sustainable processes, it is still necessary to adapt the procedures to the specific realities, with greater involvement of the educational community and continuous monitoring of improvements;
- b) in Leadership and Management, community mobilization and strategic partnerships stand out, but there is still a need to strengthen the strategic vision focused on the quality of learning and improve the management and training of human resources;
- c) regarding the Provision of the Educational Service, despite the curricular diversification and successful strategies, challenges persist in the evaluation of learning, collaborative work and implementation of active methodologies; and that,
- d) on Results, although there is the involvement of the school in community initiatives and the involvement of students in citizenship activities, it is necessary to reduce asymmetries in the internal results of students, increase student responsibility, and reinforce standards of conduct as preventive and regulatory mechanisms for students discipline.

In summary, it is recommended that Schools prioritize continuous self-assessment and adjusted to schools, focusing on quality, inclusion and the Profile of Students Leaving Compulsory Education, reinforcing the strategic vision and promoting teacher training for inclusive and equitable educational

practices. The tutelage is proposed to strengthen national teacher training programs and projects, in the most fragile areas identified, in order to promote more effective educational practices, raise the quality of learning and foster the development of the skills of the Profile of Students Leaving Compulsory Education.

- Please elaborate. Brief quantitative information may be added.

Global estimate of the “+Classes+Success” Plan 22.14M€/Year

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☒ Translation of the Convention/Recommendation into the national and possibly local languages
- ☒ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☒ Other:

Reflecting Portugal's commitment to promoting equality and non-discrimination in education various activities have been undertaken activities to draw attention to the 1960 Convention/Recommendation on the right to education and to raise awareness of non-discrimination and equality of educational opportunities. Examples include:

- Intercultural Education Programs: The High Commission for Migration (ACM, I.P.) and the Ministry of Education, Science and Innovation have implemented initiatives like the Network of Schools for Intercultural Education (REEI) and the Intercultural School Stamp. These programs aim to promote the integration and educational success of all students, regardless of their cultural or national origins;
- Training and Awareness Campaigns: ACM, I.P. offers training sessions and resources to promote intercultural learning, acceptance of differences, and conflict mediation. These sessions target various groups, including young people, teachers, and other education professionals;
- Consultations and Reports: Portugal participates in UNESCO's consultations on the implementation of the 1960 Convention and Recommendation against Discrimination in

Education. These consultations help assess and report on the progress made in promoting the right to education and addressing discrimination.

Printed on recycled paper